

TAB 23



Board of Education Report

File #: Rep-205-25/26, **Version:** 1
In Control: Charter Schools Division

Agenda Date: 12/16/2025

Denial of the Renewal Petition for New Horizons Charter Academy [PUBLIC HEARING] Charter Schools Division

Brief Description:

(Denial of the Renewal Petition for New Horizons Charter Academy) Recommends denial of the renewal petition for New Horizons Charter Academy, a Middle performing, Start-Up Independent charter school, located in Board District 6 and Region North, for five (5) years, beginning July 1, 2026, until June 30, 2031, to serve up to 300 students in grades TK-8 in each year of the charter term.

Action Proposed:

Adopt the denial of the renewal petition for New Horizons Charter Academy ("Charter School"), a Start-Up Independent charter school, located in Board District 6 and Region North, with middle level performance and adoption of the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy.

Background:

New Horizons Charter Academy is a TK-8 span school currently serving 132 students on a District campus at 6501 Fair Ave, North Hollywood, CA, 91601 in Board District 6 and Region North. New Horizons Charter Academy was originally approved by the LAUSD Board of Education on April 16, 2013. On November 7, 2017, the charter school was renewed for a five-year term to serve 300 students in grades TK-8. Pursuant to Education Code section 47607.4, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for New Horizons Charter Academy expires June 30, 2026.

On September 19, 2025, New Horizons Charter Academy submitted its charter renewal petition application to the Charter Schools Division seeking to continue operations of its independent charter school. The 90-day statutory timeline for Board action on this petition runs through December 18, 2025.

An initial Public Hearing was held on November 17, 2025.

Based on a comprehensive review and assessment of Charter School's renewal petition application and its record of performance, staff has determined that Charter School has not met the requirements set forth in Education Code sections 47605, 47607 and 47607.2 and therefore recommends denial of the renewal petition.

Due Diligence:

Current New Horizons Charter Academy governing board members completed questionnaires so the District may assess whether any conflicts of interest arise based on the information provided. A confidential due

diligence review of the charter school and its governing organization, school leader and financial manager, was performed by the Office of the Inspector General, and to the extent any material concerns were identified by the Office of the Inspector General, such information was forwarded to District staff for further assessment.

Statutory Framework and Criteria for Renewal:

A charter school must demonstrate that it is eligible for a renewal of its charter by meeting specific renewal criteria outlined in the Charter Schools Act. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

Criterion 1: The Charter Schools Act provides that renewals are governed by the standards and criteria described in Education Code section 47605 applicable to initial petitions. The first criterion considered in reviewing a renewal petition requires an analysis of the following:

- Whether the petition includes a sound educational program;
- Whether the petition contains a reasonably comprehensive description of the 15 elements required for petitions;
- Whether the petition contains an affirmation of each of the conditions described in Education Code section 47605(e); and
- Whether the charter school is demonstrably unlikely to successfully implement the program set forth in the petition. Education Code section 47607(b) provides that renewals are governed by the standards and criteria described in section 47605 applicable to initial petitions. (The Board may not consider the community impact analysis or District fiscal analysis in determining whether to grant or deny a renewal petition).

Criterion 2: The Board is required to consider the charter school's performance on the California School Dashboard accountability indicators. Education Code sections 47607 and 47607.2 prescribe three-tiers of performance classification in which a charter school falls within one of the following categories - "high," "middle," or "low." The three-tier classification considers a charter school's performance on the California School Dashboard accountability indicators, with an emphasis on the measurements of academic performance.

Criterion 3: Notwithstanding Criterion 1 and 2, the Board must also consider whether the charter school's enrollment or dismissal practices are discriminatory as grounds for nonrenewal. (Ed. Code, § 47607(e).) Additionally, the Board considers whether the charter school has substantial fiscal or governance factors as grounds for nonrenewal. (Ed. Code, § 47607(e).)

Grounds for Nonrenewal:

Staff of the Charter Schools Division and the Office of the General Counsel reviewed the renewal charter petition application for New Horizons Charter Academy and have assessed that the renewal petition application does not meet the criteria for approval. As fully discussed in the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy, based on review of the petition and supporting documentation, staff has determined that (1) petitioners are demonstrably unlikely to successfully implement the program set forth in the renewal petition due to substantial fiscal and governance factors; and (2) petitioners are demonstrably unlikely to successfully implement the educational program set forth in the renewal petition.

Expected Outcomes:

Denial will prevent Charter School from continuing its operations as a charter school under the authority of the LAUSD Board.

Board Options and Consequences:

“Yes” - If the Board adopts the recommendation of denial and the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy, Charter School would not be authorized to continue operating as a charter school under the terms of the authority of the LAUSD Board. Charter School’s current charter expires on June 30, 2026. The petitioners may appeal a denial to Los Angeles County Board of Education. If the petition is approved on appeal by the Los Angeles County Board of Education, Charter School would be authorized by the Los Angeles County Board of Education. If the Los Angeles County Board of Education denies the renewal petition, the petitioners may appeal that denial to the California State Board of Education. If the denial of the renewal petition is reversed by the California State Board of Education, the California State Board of Education shall designate, in consultation with the petitioners, either the LAUSD Board or the Los Angeles County Board of Education as the chartering authority. This Board Report No. 205-25/26, accompanying documents, and transcript of the Board meeting, shall constitute the Board of Education’s adopted written findings of fact for the denial of Charter School renewal petition.

“No” - If the Board does not adopt the recommendation of denial of the charter petition and the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy, and instead takes specific action to approve the renewal charter petition, Charter School would be authorized to continue operating as a charter school under the terms of the approved renewal petition for a five (5) year period beginning July 1, 2026. Within 30 days, the Board requires that the school submit to the Charter Schools Division a revised renewal charter petition that is consistent with and meets all applicable legal and LAUSD requirements, including but not limited to a reasonably comprehensive description of all fifteen required elements and current Federal, State, District Required Language.

Policy Implications:

All provisions in the FSDRL shall be consistent with and be governed by all applicable legal and District policy requirements. To the extent any inconsistency may exist between any provision contained in the FSDRL and any applicable legal and District policy requirement, those applicable legal and District policy requirements shall control and the FSDRL shall be updated accordingly.

Budget Impact:

The Local Control Funding Formula (LCFF) and various other income sources of the District are reduced when current District students enroll at a charter school, and corresponding reduction in expenditures may not occur in such cases. If the Board adopts staff recommendation of denial of the petition, the action will not have a budget impact. If the Board does not adopt the staff denial recommendation and the petition is approved, the impact on the budget will be commensurate with the terms of the specific Special Education Local Plan Area (SELPA) Memorandum of Understanding (MOU) (Option 1, 2, or 3) executed by the charter school and the District, if applicable.

Under Education Code section 47604(d), a chartering authority that grants a charter to a charter school to be operated as or by a nonprofit public benefit corporation is not liable for the debts or obligations of the charter school or for claims arising from the performance of acts, errors, or omissions by the charter school, if the

chartering authority has complied with all oversight responsibilities required by law including, but not limited to, those required by Education Code section 47604.32 and Education Code section 47605(m). As the chartering authority, the District will continue to monitor and evaluate the charter school's fiscal condition and operations, and management of public funds, including review of all legally required fiscal reports, and the annual update of the charter school's LCAP. (Ed. Code, §§ 47604.32, 47604.33, 47606.5.) Any significant modifications to the charter school's charter or operations that raise financial implications would require a material revision prior to implementation. Charter schools are expected to secure and maintain all insurance coverage consistent with all applicable legal, District and charter requirements.

Charter School has selected to join the LAUSD SELPA Option 3. Charter School's fair share contribution to special education will be 10% of the charter school's AB 602 (rate includes Base, Cost-of-Living Adjustment (COLA), and Growth/Decline reduced by the amount withheld for Program Specialist/Regionalized Services) and Federal IDEA revenues. This amount will be paid from Charter School's Local Control Funding Formula ("LCFF") funds or other unrestricted revenue sources and will be allocated to support the existing District-wide administration of special education supports and services. The amount withheld by the District from the Program Specialist/Regionalized Services in fiscal year will continue to be withheld and adjusted annually for COLA. An additional 10% of special education revenues will be retained by the District and allocated as directed by the Advisory Board and members of the LAUSD SELPA Option 3, with the leadership of the Director, Charter Operated Programs. These funds will be used to support the personnel for the members of the LAUSD SELPA Option 3; build management and operating procedures to create an infrastructure to support schools in meeting the needs of students with mild to severe disabilities; and, to create and implement new programs that serve students in charter schools. If Charter School does not spend their allocation of special education funds during a fiscal year of the charter petition period, the allocation of special education funds to Charter School for the next fiscal year will be reduced in an amount equal to the unspent special education funds of the previous fiscal year.

In addition to the payments required under this option, Charter School may request specific special education related services from the District through fee-for-service arrangements that will reflect the calculated cost of the requested services and will be contingent on the District's available resources.

Any change in the Option election that occurs during Charter School's charter term shall be mutually agreed upon and addressed in a MOU between the charter school and the District. The new Option election shall be effective on July 1 of the next school year with the corresponding fair share contribution.

Student Impact:

As stated in the LAUSD Policy and Procedures for Charter Schools, "[W]hen the LAUSD Board authorizes and oversees a charter school, it establishes a relationship to advance its vision and mission and to accelerate gains in academic achievement and accountability for all of its students and public schools," (Policy, p.3). Based on a comprehensive review and assessment of Charter School's renewal petition application, staff has determined that Charter School has not met the requirements for charter school approval and therefore recommends denial of the renewal petition.

Equity Impact:

Not applicable

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Issues and Analysis:

If all applicable pending issues, including but not limited to special education requirements, special education local planning area (SELPA) requirements, governance, fiscal and facilities matters, are not resolved at the time of the Board meeting, the item may be pulled from the agenda to the extent consistent with the Charter Schools Act and the LAUSD Policy and Procedures for Charter Schools.

Attachments:

Attachment A - Staff Assessment and Recommendation Report

Attachment B - New Horizons Charter Academy Data Set

Attachment C - New Horizons Charter Academy RSM Data

Attachment D - Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy

Budget, Petition, and Verified Data Reports (if applicable) will be available prior to the board meeting at the following link:

https://drive.google.com/drive/folders/1-n-PTwR8fb2273KwkD2t-5R4RxWfGkQq?usp=drive_link

Submitted:

11/20/25

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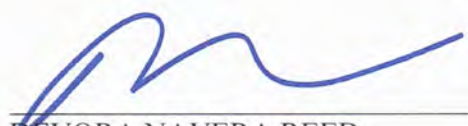
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


CAROLYN SPAHT GONZALEZ
Chief of Staff

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:

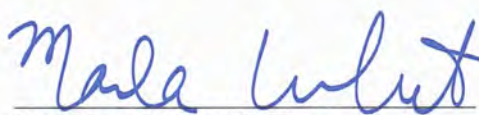

JOSÉ COLE-GUTIÉRREZ
Senior Executive Director of Strategy
Division of Data, Strategy, and Innovation

REVIEWED BY:


KURT E. JOHN
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

APPROVED & PRESENTED BY:


MARLA WILLMOTT
Director
Charter Schools Division

STAFF ASSESSMENT AND RECOMMENDATION REPORT

RENEWAL PETITION

Board of Education Report 205-25/26
December 16, 2025

School Name:	New Horizons Charter Academy		BOARD IS REQUIRED TO TAKE ACTION BY: December 18, 2025
Type of Charter School:	Start-Up Independent Charter School		
Charter Operator	Dharma Educational Institute		
Location Code:	2263		
Type of Site(s):	District-Proposition 39 Co-Location		
Site Address(es):	6501 Fair Avenue, North Hollywood, CA 91601 (Fair Avenue Elementary Campus)		
Board District(s):	6	Region(s):	North
Grade Levels Served:	TK-8	Current Enrollment:	132
Grade Levels Authorized in Current Charter:	TK-8	Approved Enrollment in Current Charter:	300
CONSIDERATION:	Renewal		
CDE PERFORMANCE CATEGORY: (PER CDE'S 2025 CLASSIFICATION)	Middle Performing		
STAFF RECOMMENDATION:	Denial		
PROPOSED BENCHMARKS:	Not applicable		

STAFF ASSESSMENT

I. ACTION PROPOSED

Staff recommends denial of the renewal petition for New Horizons Charter Academy (“New Horizons” or “Charter School”) located in Board District 6 and Region North, for a term of five (5) years, beginning July 1, 2026, until June 30, 2031, to serve up to 300 students in grades TK-8 in each year of the charter term.

II. RENEWAL REQUIREMENTS

Upon submission, District staff comprehensively reviews each renewal petition application to determine whether the school has met the requirements for renewal set forth in Education Code sections 47605, 47607, 47607.2, and 47611.5.

Criteria for Charter School Renewal and Grounds for Nonrenewal

As part of staff’s holistic review of the renewal petition application, the charter school must be determined to be eligible for renewal of its charter under the specific renewal criteria outlined in the Charter Schools Act. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

- **Criterion 1:** Does the renewal petition include a sound educational program, a reasonably comprehensive description of the 15 elements required for petitions, an affirmation of each of the conditions described in Education Code section 47605(e), and are petitioners demonstrably unlikely to successfully implement the program set forth in the petition? (Ed. Code, § 47607(b).)

For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy*, these criteria have been determined to be bases for denial.

- **Criterion 2:** Is the charter school “high,” “middle,” or “low” performing? (see Ed. Code, §§ 47607(c), 47607.2(a), and 47607.2(b).) Has the charter school attained measurable increases in academic achievement schoolwide and for numerically significant student groups served by the charter school, and does the charter school have strong postsecondary outcomes, if applicable?

These criteria have been determined not to be bases for denial.

- **Criterion 3:** Is the charter school serving all pupils who wish to attend, or does the charter school have substantial fiscal or governance issues? (Ed. Code, § 47607(e).)

For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy*, these criteria have been determined to be bases for denial.

Charter Petition Requirement:

In accordance with Education Code section 47611.5, a charter school charter shall contain a declaration regarding whether or not the charter school shall be deemed the exclusive public school employer of the employees at the charter school for the purposes of Section 3540.1 of the Government Code, and that declaration shall not be materially inconsistent with the charter.

- Does the petition contain a declaration of whether or not the charter school shall be deemed the exclusive public employer of the employees of the charter school?

These criteria have been determined not to be bases for denial.

III. GENERAL SCHOOL INFORMATION

A. School History

	New Horizons Charter Academy
Initial Authorization:	On April 16, 2013, New Horizons Charter Academy was authorized by the LAUSD Board of Education to serve 293 students in grades K-8.
Most Recent Renewal	The charter was renewed on November 7, 2017 for a five-year term (July 1, 2018 - June 30, 2023) to serve up to 300 students in grades TK-8. Pursuant to Education Code section 47607.4, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for New Horizons Charter Academy expires June 30, 2026.
Approved Material Revisions of Current Charter:	The Board of Education approved a request for material revision on December 12, 2023, to relocate the charter school to a new facility.
Board Benchmarks in Current Charter Term:	On November 7, 2017, as part of the school's most recent renewal, the LAUSD Board of Education issued the following academic benchmark to New Horizons Charter Academy: 1. Demonstrate at least one performance level growth per academic year, as reported on the California School Dashboard, for numerically significant subgroups in Math, as measured by the CAASPP (SBAC) Assessment at a rate equal to or greater than the Resident and Similar Schools median, with the goal of achieving and maintaining the "Green" performance level or higher. Please see the "Additional Information" section below.
Submission of Renewal Petition Application:	New Horizons Charter Academy submitted its renewal petition application on September 19, 2025. The 90-day statutory timeline for Board action on the petition runs through December 18, 2025.
Concurrent Request for Material Revision:	Not applicable
Master Plan for English Learners and Standard English Learners:	New Horizons Charter Academy has adopted LAUSD's Master Plan for English Learners and Standard English Learners.
Special Education SELPA	New Horizons Charter Academy participates in LAUSD Special Education Local Plan Area (SELPA) Option 3.

B. Charter School Operator

New Horizons Charter Academy is operated by Dharma Educational Institute, a California nonprofit public benefit corporation that does not operate any other LAUSD-authorized charter school.

IV. STUDENT ACHIEVEMENT AND EDUCATIONAL PERFORMANCE

a. Summary

New Horizons Charter Academy has been identified by the state as a Middle performing charter school. The recommendation for renewal has considered the schoolwide performance and performance of numerically significant student groups and the state and local indicators reported on the California School Dashboard, and whether there was clear and convincing verified data evidence showing the school demonstrated measurable increases in academic achievement, as defined by at least one year's progress in each year in school, and/or strong postsecondary outcomes, as applicable.

Overall, Charter School's Dashboard performance was higher than the state in Math and on the English Language Progress Indicator (ELPI), but lower in English Language Arts (ELA). The charter school provided two years of verified data, demonstrating mixed results for All Students and for a majority of numerically significant student groups in ELA and Math. In addition, there are noted concerns with participation rates. Further analysis in ELA demonstrated higher outcomes for the charter school when compared to Resident Schools.

Please see the New Horizons Charter Academy data sets and Verified Data Reports.

b. Measurements of Academic Performance on the California School Dashboard

The California School Dashboard displays performance for seven state measures. The Performance Level, or color, is based on two factors. The current year data for the measure (Status) and the difference between current year and prior year data (Change). The point at which these two levels intersect on the five-by-five table determines the color. From highest to lowest, the Performance Levels are Blue, Green, Yellow, Orange, and Red. Below, the 2023, 2024, and 2025, Dashboard Performance Levels (colors) are provided.

New Horizons Charter Academy Dashboard Indicators

School Year	ELA	Math	English Learner Progress	College/Career	Chronic Absenteeism	Graduation Rate	Suspension Rate
2022-2023	Orange	Yellow	Blue	Not Applicable	Red	Not Applicable	Green
2023-2024	Yellow	Orange	Orange	Not Applicable	Yellow	Not Applicable	Blue
2024-2025	Green	Yellow	Blue	Not Applicable	Orange	Not Applicable	Green

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

c. English Language Arts Indicator

In 2023 in English Language Arts (ELA), the charter school's Distance from Standard (DFS) was lower than the state for All Students, and lower than the state for two of three numerically significant student groups. In 2024 in ELA, the charter school's DFS was lower than the state for All Students, and for three of four numerically significant student groups. In 2025 in ELA, the charter school's DFS was higher than the state for All Students, and higher than the state for all three numerically significant student groups.

New Horizons Charter Academy - English Language Arts Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Orange	-39.8	-4.7	Orange	-13.6	Lower
Latino	Met	Orange	-47.4	-1.8	Orange	-40.2	Lower
English Learner	Met	Red	-91.0	-22.7	Orange	-67.7	Lower
Socioeconomically Disadvantaged	Met	Orange	-40.0	-3.7	Orange	-42.6	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

New Horizons Charter Academy - English Language Arts Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-32.0	7.8	Orange	-13.2	Lower
Latino	Met	Orange	-46.5	0.9	Orange	-39.3	Lower
White	Met	No Performance Color	-13.5	7.3	Green	19.2	Lower
English Learner	Met	Orange	-79.3	11.7	Orange	-67.6	Lower
Socioeconomically Disadvantaged	Met	Yellow	-33.7	6.4	Orange	-40.9	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

New Horizons Charter Academy - English Language Arts Indicator - 2024-2025

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Green	4.1	36.1	Yellow	-8.1	Higher
Latino	Met	Green	-2.2	44.2	Yellow	-33.7	Higher
English Learner	Met	Yellow	-12.1	67.1	Yellow	-59.9	Higher
Socioeconomically Disadvantaged	Met	Green	2.5	36.2	Yellow	-35.3	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

d. Math Indicator

In 2023 in Math, the charter school's DFS was lower than the state for All Students, and higher than the state for two of three numerically significant student groups. In 2024 in Math, the charter school's DFS was lower than the state for All Students, and higher than the state for two of four numerically significant student groups. In 2025 in Math, the charter school's DFS was higher than the state for All Students, and higher than the state for all three numerically significant student groups.

New Horizons Charter Academy - Math Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-63.8	3.6	Orange	-49.1	Lower
Latino	Met	Yellow	-75.7	12.1	Orange	-80.8	Higher

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
English Learner	Met	Orange	-94.7	-6.3	Orange	-93.4	Lower
Socioeconomically Disadvantaged	Met	Yellow	-58.9	10.7	Yellow	-80.8	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

New Horizons Charter Academy - Math Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Orange	-63.7	0.1	Orange	-47.6	Lower
Latino	Met	Orange	-86.7	-11.0	Orange	-79.2	Lower
White	Met	No Performance Color	-26.1	0.9	Yellow	-10.3	Lower
English Learner	Met	Yellow	-82.4	12.3	Orange	-93.4	Higher
Socioeconomically Disadvantaged	Met	Orange	-67.3	-8.4	Orange	-78.2	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

New Horizons Charter Academy - Math Indicator - 2024-2025

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-29.6	34.1	Yellow	-42.4	Higher
Latino	Met	Yellow	-61.9	24.9	Yellow	-73.6	Higher
English Learner	Met	Yellow	-46.6	35.8	Yellow	-86.1	Higher
Socioeconomically Disadvantaged	Met	Yellow	-39.1	28.2	Yellow	-72.9	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

e. English Learner Progress Indicator

In 2023 on the English Learner Progress Indicator (ELPI), the charter school's English Learner progress rate was higher than the state. In 2024 on the ELPI, the charter school's English Learner Progress rates for the charter school's English Learner and Long-term English Learner student groups were higher than the state's rates. In 2025 on the ELPI, the charter school's English Learner Progress rate was higher than the state.

New Horizons Charter Academy - English Learner Progress Indicator - 2022-2023

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	Met	Blue	55.8%	19.6%	Yellow	48.7%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

New Horizons Charter Academy - English Learner Progress Indicator - 2023-2024

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	Met	Orange	52.6%	-3.1%	Orange	45.7%	Higher

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
Long-Term English Learner	Not Met	No Performance Color	66.7%	9.5%	Orange	45.8%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

New Horizons Charter Academy - English Learner Progress Indicator - 2024-2025

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	Met	Blue	69.4%	16.8%	Yellow	46.4%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

f. College/Career Indicator

Not applicable

g. Chronic Absenteeism Indicator

In 2023, 2024, and 2025, on the Chronic Absenteeism Indicator, the charter school's rate of chronic absenteeism was higher than the state for All Students and for all numerically significant student groups.

h. Graduation Indicator [HS only]

Not applicable

i. Suspension Rate Indicator

In 2023, 2024, and 2025, the charter school's percentage of students suspended at least once was lower than the state for All Students and for all numerically significant student groups.

j. Dashboard Local Indicators

Staff also considered the Local Indicators (e.g., Basic: Teachers, Instructional Materials, Facilities; Implementation of Academic Standards; Parent and Family Engagement; Local Climate Survey; Access to a Broad Course of Study) which have all been reported as "Not Met" in 2023, and "Met" in 2024 and 2025.

k. Additional Information

As noted above, New Horizons Charter Academy has one (1) benchmark related to academics. The following summarizes the outcomes of the benchmark for each of the seven years (2018-2019 through 2024-2025) of the current charter term.

Note: Annual benchmark status updates are based on prior year(s) performance outcomes. For example, benchmarks that require performance level growth (as reported for the years in the table(s) below) are based on available data from the preceding two school years (e.g., 2019-2020 benchmark status is based on 2018 CA Dashboard data and 2019 CA Dashboard data). As 2020 and 2021 CA Dashboard data are unavailable due to statewide assessment disruptions caused by the COVID-19 pandemic, "No Update" is indicated for applicable benchmarks for the 2020-2021 and 2021-2022 school years.

Benchmark 1: *Demonstrate at least one performance level growth per academic year, as reported on the California School Dashboard, for numerically significant subgroups in Math,*

as measured by the CAASPP (SBAC) Assessment at a rate equal to or greater than the Resident and Similar Schools median, with the goal of achieving and maintaining the “Green” performance level or higher.

Benchmark 1: Math (Numerically Significant Subgroups)						
2018-2019	2019-2020	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
Not Met	Not Met	No Update	No Update	Met	Not Met	Not Met

Benchmark 1 was met for one year (2022-2023) and not met for four years (2018-2019, 2019-2020, 2023-2024, and 2024-2025). There was no update for two years (2020-2021 and 2021-2022).

V. ANNUAL PERFORMANCE-BASED OVERSIGHT RESULTS

In accordance with Education Code section 47604.32, the District’s Charter Schools Division (CSD) conducts at least one school site visit each year where the CSD evaluates charter school performance in the following four categories: Governance; Student Achievement and Educational Performance; Organizational Management, Programs, and Operations; and Fiscal Operations. Charter schools are rated in each category based on information and evidence gathered at the time of the annual performance-based oversight visit following a four-point rubric: (4) *Accomplished*, (3) *Proficient*, (2) *Developing*, and (1) *Unsatisfactory*. Please see below for New Horizons’ outcomes on its annual oversight evaluation reports for the last two years.

a. Governance

Oversight Ratings/Concerns	
2023-2024	<i>Proficient</i>
2024-2025	<i>Developing</i>
Concerns	The rating of <i>Developing</i> in 2024-2025 was primarily due to the Charter School governing board’s limited capacity and effectiveness in overseeing the school’s fiscal operations, as evidenced by the fiscal-related key issues identified in the annual performance-based oversight report.

b. Student Achievement and Educational Performance

Oversight Ratings/Concerns	
2023-2024	<i>Developing</i>
2024-2025	<i>Developing</i>
Concerns	The ratings of <i>Developing</i> in 2023-2024 and 2024-2025 were due to a majority of reported indicators that were rated at a “2” or “1.”

c. Organizational Management, Programs, and Operations

Oversight Ratings/Concerns	
2023-2024	<i>Proficient</i>
2024-2025	<i>Proficient</i>
Concerns	No unresolved issues pending

d. Fiscal Operations

Oversight Ratings/Concerns	
2023-2024	<i>Developing</i>
2024-2025	<i>Unsatisfactory</i>
Concerns	The rating of <i>Developing</i> in 2023-2024 and <i>Unsatisfactory</i> in 2024-2025 were primarily due to the key issues identified in the respective annual performance-based oversight reports, as well as a material weakness disclosed in Charter School's 2023-2024 independent audit report. See further details in the Fiscal Management and Performance section below.

VI. VERIFIED DATA

Charter schools satisfying the Middle performing criteria may be renewed for a specified term. (Ed. Code, § 47607.2(b)(7).) A chartering authority must consider, among other requirements, clear and convincing evidence, demonstrated by verified data, showing the charter school's achieved measurable increases in academic achievement, or strong postsecondary outcomes for the timeframe specified in law. (Ed. Code, § 47607.2(b)(3).)

Charter School provided data from "MAP Growth by NWEA, Grades K-12" (NWEA) *Student Growth Summary Report* in Reading, Language Usage, and Math. NWEA is an adopted academic progress indicator approved by the State Board of Education (SBE) to be on the verified data list. Per NWEA, this assessment only reports data disaggregated by grade levels.

Per Education Code section 47607.2 (c)(2), the State Board of Education established criteria to define verified data. To be eligible for inclusion as verified data, a data source (e.g., assessment or postsecondary outcome) must include the results of at least 95 percent of eligible students. The *Student Growth Summary Report* provided by Charter School in Reading does not provide a participation rate on the report, however it does include the total number of "growth events¹" on the reports. In 2024-2025 Charter School had a norm enrollment of 141 students and the NWEA Reading report indicates that the school had 119 growth events; the NWEA Language Usage had 81 growth events; and the NWEA Math report had 124 growth events. Thus, the 2024-2025 assessment data does not appear to include at least 95% of eligible students.

Per the California SBE's May 2023 Agenda Item #02, publisher guidance states, "A CGI range of -0.2 to 0.2 (or greater) could be used as an approximation of one year's growth (or more) in a subject, as the overall average growth of students would be generally consistent with the amount of growth observed by students in the same grade and subject with the same starting achievement level receiving a similar amount of instructional exposure."

ELA**Reading**

Charter School provided data for 2023-2024 and 2024-2025 (Fall to Spring administration) for Grades Kindergarten - 8, and for the following student groups²: African American, Asian, Latino, Two or More Races, White, English Learner, Socioeconomically Disadvantaged, and Students with Disabilities.

¹ Total Number of Growth Events: The number of students with valid growth-based test events for both terms.

² Student group names that appear on the report may be different than names on the CA Dashboard (e.g., "Students with Disabilities will be labeled as "Special Education" on the NWEA report).

The 2024-2025 disaggregated data outcomes are represented in the table below showing the Charter School met one year's progress for all reportable grade levels and student groups, with the exception of Grade 3.

MAP Growth Reading 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Reading: Conditional Growth Index (CGI)	One Year's Progress
Kindergarten	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 1	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 2	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 3	14	-0.2 to 0.2	-0.52	Not Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	-0.41	Not Met
Grade 4	15	-0.2 to 0.2	1.06	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	1.15	Met
Grade 5	16	-0.2 to 0.2	1.21	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	16	-0.2 to 0.2	1.21	Met
Grade 6	14	-0.2 to 0.2	1.72	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	12	-0.2 to 0.2	1.75	Met
Grade 7	15	-0.2 to 0.2	1.68	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	14	-0.2 to 0.2	1.55	Met
Grade 8	19	-0.2 to 0.2	0.34	Met
Latino	11	-0.2 to 0.2	0.31	Met
Socioeconomically Disadvantaged	17	-0.2 to 0.2	0.22	Met

Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Charter School also submitted verified data using NWEA for the 2023-2024 school year. Based on NWEA's CGI range of -0.2 to 0.2, Charter School did not meet the one year's progress for a majority of grade levels and for two of the school's three applicable student groups.

ELA

Language Usage

Charter School provided data for 2023-2024 and 2024-2025 (Fall to Spring administration) for Grades Kindergarten - 8, and for the following student groups³: African American, Asian, Latino, Two or More Races, White, English Learner, Socioeconomically Disadvantaged, and Students with Disabilities.

The 2024-2025 disaggregated data outcomes are represented in the table below showing the Charter School met one year's progress for all reportable grade levels and student groups.

MAP Growth Language Usage 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Language Usage: Conditional Growth Index (CGI)	One Year's Progress
Kindergarten	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 1	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 2	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 3	14	-0.2 to 0.2	0.00	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	0.06	Met
Grade 4	14	-0.2 to 0.2	0.75	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	12	-0.2 to 0.2	0.69	Met
Grade 5	*	*	*	*
Grade 6	14	-0.2 to 0.2	1.47	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	12	-0.2 to 0.2	1.42	Met

³ Student group names that appear on the report may be different than names on the CA Dashboard (e.g., "Students with Disabilities" will be labeled as "Special Education" on the NWEA report).

MAP Growth Reading 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Reading: Conditional Growth Index (CGI)	One Year's Progress
Grade 7	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 8	19	-0.2 to 0.2	0.32	Met
Latino	11	-0.2 to 0.2	0.44	Met
Socioeconomically Disadvantaged	16	-0.2 to 0.2	0.25	Met

Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Charter School also submitted verified data using NWEA for the 2023-2024 school year. Based on NWEA's CGI range of -0.2 to 0.2, Charter School did not meet the one year's progress for a majority of grade levels and did not meet the one year's progress for any of the school's three applicable student groups.

MATH

Charter School provided data for 2023-2024 and 2024-2025 (Fall to Spring administration) for Grades Kindergarten - 8, and for the following student groups⁴: African American, Asian, Latino, Two or More Races, White, English Learner, Socioeconomically Disadvantaged, and Students with Disabilities.

The 2024-2025 disaggregated data outcomes are represented in the table below showing the Charter School met one year's progress for all reportable grade levels and student groups.

MAP Growth Math 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Math: Conditional Growth Index (CGI)	One Year's Progress
Kindergarten	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 1	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 2	*	-0.2 to 0.2	*	*
Latino	*	-0.2 to 0.2	*	*

⁴ Student group names that appear on the report may be different than names on the CA Dashboard (e.g., "Students with Disabilities" will be labeled as "Special Education" on the NWEA report).

MAP Growth Math 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Math: Conditional Growth Index (CGI)	One Year's Progress
Socioeconomically Disadvantaged	*	-0.2 to 0.2	*	*
Grade 3	14	-0.2 to 0.2	0.29	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	0.51	Met
Grade 4	15	-0.2 to 0.2	0.60	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	0.46	Met
Grade 5	20	-0.2 to 0.2	0.42	Met
Latino	11	-0.2 to 0.2	0.23	Met
Socioeconomically Disadvantaged	20	-0.2 to 0.2	0.42	Met
Grade 6	15	-0.2 to 0.2	0.81	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	0.69	Met
Grade 7	14	-0.2 to 0.2	2.80	Met
Latino	*	-0.2 to 0.2	*	*
Socioeconomically Disadvantaged	13	-0.2 to 0.2	2.70	Met
Grade 8	19	-0.2 to 0.2	0.18	Met
Latino	11	-0.2 to 0.2	0.02	Met
Socioeconomically Disadvantaged	16	-0.2 to 0.2	0.09	Met

Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Charter School also submitted verified data using NWEA for the 2023-2024 school year. Based on NWEA's CGI range of -0.2 to 0.2, Charter School did not meet the one year's progress for a majority of grade levels and did not meet the one year's progress for any of the school's three applicable student groups.

Based on the review and consideration of verified data, New Horizons Charter Academy included two years of data, including grade levels Kindergarten - 8 and student group reports (African American, Asian, Latino, Two or More Races, White, English Learner, Socioeconomically Disadvantaged, and Students with Disabilities) in Reading, Language Usage, and Math. New Horizons Charter Academy appears not to have met the 95 percent participation rate based on Norm Enrollment compared to growth events.

VII. FURTHER ANALYSIS FOR MIDDLE PERFORMING CHARTER SCHOOLS

Following the review of the foregoing performance data for this charter school placing a greater weight on academic performance on the California School Dashboard, and considering Charter School's verified data was not clear and convincing, staff determined that the school's performance in ELA requires further review.

Based on the charter school's performance on California School Dashboard in ELA and the submitted verified data by the charter school, Staff conducted a further analysis of ELA in comparison to the Resident Schools Median (RSM).⁵ As indicated in the tables below, when comparing the school to the RSM, New Horizons Charter Academy's data indicates that its student performance on the California School Dashboard in 2023, 2024, and 2025, was higher than the RSM for All Students and for all numerically significant student groups in ELA.

Resident Schools Analysis

New Horizons Charter Academy 2022-2023 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	152	Orange	-39.8	1,872	Orange	-63.6	Higher
Latino	104	Orange	-47.4	1,701	Orange	-64.7	Higher
English Learner	49	Red	-91.0	639	Orange	-106.1	Higher
Socioeconomically Disadvantaged	137	Orange	-40.0	1,591	Orange	-65.3	Higher

Data Sources: California School 2023 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

New Horizons Charter Academy 2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	138	Yellow	-32.0	1,825	Yellow	-52.4	Higher
Latino	84	Orange	-46.5	1,639	Yellow	-53.5	Higher
White	32	No Color	-13.5	85	Yellow	-57.5	Higher
English Learner	52	Orange	-79.3	687	Orange	-91.8	Higher
Socioeconomically Disadvantaged	123	Yellow	-33.7	1,721	Yellow	-53.8	Higher

Data Sources: California School 2024 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

⁵ Per LAUSD Policy, a Resident Schools Median analysis is conducted for charter schools classified as Middle Performing, when determining whether closure of the charter school is in the best interest of pupils, among other factors.

New Horizons Charter Academy 2024-2025 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	99	Green	4.1	1,765	Yellow	-44.8	Higher
Latino	58	Green	-2.2	1,579	Yellow	-44.3	Higher
English Learner	41	Yellow	-12.1	728	Orange	-85.9	Higher
Socioeconomically Disadvantaged	89	Green	2.5	1,684	Yellow	-46.1	Higher

Data Sources: California School 2025 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

VIII. FISCAL MANAGEMENT AND PERFORMANCE

a. Fiscal Condition

New Horizons Charter Academy's fiscal condition is positive. However, Charter School's fiscal condition is deteriorating. For more information, please refer to the *Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy*.

	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Audited Actuals)	2024-2025 (Unaudited Actuals)
Net Assets	\$1,477,579	\$1,938,208	\$2,216,276	\$2,060,845	\$1,693,194
Net Income/Loss	\$980,361	\$460,630	\$278,068	(\$155,431) ¹	(\$367,651) ²
Transfers In/Out	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0
Norm Enrollment ^A	295	263	258	195	141

¹ According to New Horizons Charter Academy, the reported net loss for Fiscal Year 2023-2024 was primarily due to reduced local and federal revenues and increased lease expense of \$36K per month, beginning in February 2024, for the new facility the school plans to relocate to.

² According to New Horizons Charter Academy, the reported net loss for Fiscal Year 2024-2025's Unaudited Actuals was primarily due to lower than budgeted Average Daily Attendance (ADA) (from 185 to 130.66), resulting in Charter School not meeting the cash reserve and current ratio above the District-recommended thresholds.

^A New Horizons Charter Academy reported 132 Norm Enrollment for Fiscal Year 2025-2026. New Horizons Charter Academy stated that it plans to increase enrollment through various means, for example, by increasing community engagement. The CSD will continue to monitor Charter School's student enrollment, the status of its relocation to the new building, and fiscal condition as part of its oversight process.

- b. 2023-2024 Independent Audit Report
 Audit Opinion: Unmodified/Unqualified
 Material Weaknesses: Yes. See the description below.
 Deficiencies/Findings: None Reported
 Lack of a Going Concern: None Reported

New Horizons Charter Academy's 2023-2024 annual independent audit report identified a finding as a material weakness concerning the internal controls related to the restatement of net assets and preparation of the financial statements. A Notice of Concern was issued on May 15, 2025 regarding the audit finding. The school has initiated corrective actions with specific steps to address this audit finding. The CSD will continue to monitor this issue through its oversight process, including a review of New Horizons Charter Academy's 2024-2025 independent audit report to evaluate the implementation of corrective actions.

- c. Other Significant Fiscal Information
 For more information, please refer to the *Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy*.

ATTACHMENT B

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

CA School Dashboard: Academic Performance - English Language Arts

This report shows the performance levels for the English Language Arts Academic Performance Indicator for all student groups in grades 3-8 and 11. It also shows the participation rate, number of students tested, DFS (status), and performance level (color) for three consecutive years of the CA Dashboard. Performance Levels (colors) have five possible values (Red, Orange, Yellow, Green, Blue). A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless youth, to receive a status level for each student group. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English Language Arts and Mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS). When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																								
Student Group	Dashboard 2023								Dashboard 2024								Dashboard 2025							
	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State
All Students	96%	152	-39.8	-4.7	Declined	Orange	-13.6	Lower	100%	138	-32.0	7.8	Increased	Yellow	-13.2	Lower	100%	99	4.1	36.1	Increased Significantly	Green	-8.1	Higher
English Learner	96%	49	-91.0	-22.7	Declined Significantly	Red	-67.7	Lower	100%	52	-79.3	11.7	Increased	Orange	-67.6	Lower	100%	41	-12.1	67.1	Increased Significantly	Yellow	-59.9	Higher
Latino	95%	104	-47.4	-1.8	Maintained	Orange	-40.2	Lower	100%	84	-46.5	0.9	Maintained	Orange	-39.3	Lower	100%	58	-2.2	44.2	Increased Significantly	Green	-33.7	Higher
Long-Term English Learner	--	--	--	--	--	--	--	--	100%	13	-75.8	27.4	Increased Significantly	--	-109.6	--	100%	7	*	*	*	*	-104.5	*
Socioeconomically Disadvantaged	95%	137	-40.0	-3.7	Declined	Orange	-42.6	Higher	100%	123	-33.7	6.4	Increased	Yellow	-40.9	Higher	100%	89	2.5	36.2	Increased Significantly	Green	-35.3	Higher
Students with Disabilities	100%	22	-110.6	-2.1	Maintained	--	-96.3	--	100%	19	-116.4	-5.8	Declined	--	-95.6	--	100%	16	-79.6	36.9	Increased Significantly	--	-89.4	--
White	100%	28	-20.8	-14.1	Declined	--	20.8	--	100%	32	-13.5	7.3	Increased	--	19.2	Lower	100%	21	14.0	27.5	Increased Significantly	--	23.8	--

Data Sources: California School Dashboard Research data files.

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

CA School Dashboard: Academic Performance - Math

This report shows the performance levels for the Mathematics Academic Performance Indicator for all student groups in grades 3-8 and 11. It also shows the participation rate, number of students tested, DFS (status), and performance level (color) for three consecutive years of the CA Dashboard. Performance Levels (colors) have five possible values (Red, Orange, Yellow, Green, Blue). A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless youth, to receive a status level for each student group. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English Language Arts and Mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS). When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																								
Student Group	Dashboard 2023								Dashboard 2024								Dashboard 2025							
	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State
All Students	95%	151	-63.8	3.6	Increased	Yellow	-49.1	Lower	100%	141	-63.7	0.1	Maintained	Orange	-47.6	Lower	99%	104	-29.6	34.1	Increased Significantly	Yellow	-42.4	Higher
English Learner	97%	49	-94.7	-6.3	Declined	Orange	-93.4	Lower	100%	55	-82.4	12.3	Increased	Yellow	-93.4	Higher	100%	46	-46.6	35.8	Increased Significantly	Yellow	-86.1	Higher
Latino	95%	104	-75.7	12.1	Increased	Yellow	-80.8	Higher	100%	86	-86.7	-11.0	Declined	Orange	-79.2	Lower	98%	59	-61.9	24.9	Increased Significantly	Yellow	-73.6	Higher
Long-Term English Learner	--	--	--	--	--	--	--	--	100%	13	-140.2	13.6	Increased	--	-163.5	--	100%	7	*	*	*	*	-158.9	*
Socioeconomically Disadvantaged	95%	137	-58.9	10.7	Increased	Yellow	-80.8	Higher	100%	125	-67.3	-8.4	Declined	Orange	-78.2	Higher	100%	94	-39.1	28.2	Increased Significantly	Yellow	-72.9	Higher
Students with Disabilities	100%	22	-104.5	40.1	Increased Significantly	--	-127.3	--	100%	19	-126.2	-21.6	Declined Significantly	--	-124.3	--	100%	16	-143.8	-17.7	Declined Significantly	--	-120.7	--
White	100%	28	-27.0	-15.5	Declined Significantly	--	-11.1	--	100%	32	-26.1	0.9	Maintained	--	-10.3	Lower	100%	24	17.4	43.5	Increased Significantly	--	-6.2	--

Data Sources: California School Dashboard Research data files.

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

CA School Dashboard: English Learner Progress Indicator (ELPI)

This report shows the percentage of current English learner (EL) students making progress towards English language proficiency at their school for all student groups in grades 1-12. The English Learner Progress Indicator (ELPI) relies on the results of the Summative English Language Proficiency Assessment (ELPAC), including Summative Alternate ELPAC results, to determine EL student progress. For the EL students taking the Summative ELPAC, those who increase an ELPI level or maintain ELPAC Level 4 are counted as making progress towards English language proficiency. ELPI Change measures the rate at which schools are improving their ability to move their EL students towards English language proficiency. It is the difference between the prior year Status and the current year Status. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported.

Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

English Learner Progress Indicator (ELPI) - CA School Dashboard Indicator																					
Student Group	Dashboard 2023							Dashboard 2024							Dashboard 2025						
	Students	ELPI	Change	Change Level	Color	State ELPI	School vs State	Students	ELPI	Change	Change Level	Color	State ELPI	School vs State	Students	ELPI	Change	Change Level	Color	State ELPI	School vs State
English Learner	52	55.8%	19.6	Increased Significantly	Blue	48.7%	Higher	57	52.6%	-3.1	Declined	Orange	45.7%	Higher	36	69.4%	16.8	Increased Significantly	Blue	46.4%	Higher
Long-Term English Learner	--	--	--	--	--	--	--	12	66.7%	9.5	Increased	--	45.8%	Higher	7	*	*	*	*	49.1%	*

Student English Language Acquisition Results Summative ELPAC									
End Year	Student Group	School				State of California			
		Progressed at Least One ELPI Level	Maintained ELPI Level 4	Maintained ELPI Level 1, 2L, 2H, 3L, 3H	Decreased at Least One ELPI Level	Progressed at Least One ELPI Level	Maintained ELPI Level 4	Maintained ELPI Level 1, 2L, 2H, 3L, 3H	Decreased at Least One ELPI Level
2022	EL	38.8%	6.0%	17.9%	37.3%	47.5%	2.8%	31.4%	18.3%
2023	EL	46.2%	9.6%	17.3%	26.9%	45.7%	2.3%	32.2%	18.3%
2024	EL	49.1%	3.5%	29.8%	17.5%	43.2%	1.9%	34.4%	19.1%
2024	LTEL	50.0%	16.7%	16.7%	16.7%	41.6%	3.4%	28.5%	24.7%
2025	EL	69.4%	0.0%	27.8%	2.8%	44.6%	1.3%	35.5%	17.2%
2025	LTEL	--	--	--	--	46.1%	2.4%	28.2%	21.6%

Districts and schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window (February 1 to May 31) will receive a modified ELPI rate on the California School Dashboard (Dashboard). For each district and school that does not meet the 95 percent target, the minimum number of students needed to reach a participation rate of at least 95 percent is determined. The resulting number of students will be counted as not making progress in the current ELPI Status calculation.

Summative ELPAC Participation Rate Report									
End Year	Student Group	School				State of California			
		Students Tested During Testing Window	Students Enrolled During Testing Window	Participation Rate	Participation Rate Greater Than 95%	Students Tested During Testing Window	Students Enrolled During Testing Window	Participation Rate	Participation Rate Greater Than 95%
2022	EL	68	88	77.3%	N	1,052,513	1,088,734	96.7%	Y
2023	EL	86	90	95.6%	Y	1,048,300	1,069,515	98.0%	Y
2023	LTEL	10	10	100.0%	Y	193,182	202,530	95.4%	Y
2024	EL	68	70	97.1%	Y	1,028,083	1,047,977	98.1%	Y
2024	LTEL	7	8	87.5%	N	182,603	190,459	95.9%	Y

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

CA School Dashboard: Chronic Absenteeism

This report shows the percentage of students in Kindergarten through grade eight who were absent 10 percent or more of the school year for all student groups in grades TK-8. Please note that good performance on the Chronic Absenteeism indicator means having the lowest percentage of students chronically absent in the current year. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students with scores in the current and prior year, status is reported, but no performance level (color) will be reported. When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Chronic Absenteeism - CA School Dashboard Indicator																					
Student Group	Dashboard 2023							Dashboard 2024							Dashboard 2025						
	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State
All Students	275	44.0%	1.5	Increased	Red	24.3%	Higher	200	34.5%	-9.5	Declined Significantly	Yellow	18.6%	Higher	148	33.8%	-0.7	Declined	Orange	17.1%	Higher
African American/Black	15	53.3%	-21.7	Declined	--	36.4%	--	13	61.5%	8.2	Increased	--	31.3%	--	12	75.0%	13.5	Increased	--	29.8%	--
English Learner	95	35.8%	-0.6	Declined	Orange	26.3%	Higher	75	38.7%	2.9	Increased	Red	20.1%	Higher	57	33.3%	-5.3	Declined	Orange	18.1%	Higher
Latino	175	45.7%	2.2	Increased	Red	28.4%	Higher	119	33.6%	-12.1	Declined	Orange	21.7%	Higher	83	36.1%	2.5	Increased	Red	20.1%	Higher
Long-Term English Learner	--	--	--	--	--	--	--	15	40.0%	-20.0	Declined	--	23.9%	--	8	*	*	*	*	22.5%	*
Socioeconomically Disadvantaged	251	44.6%	-0.3	Maintained	Red	29.9%	Higher	179	35.8%	-8.9	Declined Significantly	Yellow	23.4%	Higher	134	35.1%	-0.7	Declined	Orange	21.7%	Higher
Students with Disabilities	29	34.5%	-6.4	Declined	--	33.1%	--	25	20.0%	-14.5	Declined	--	26.3%	--	21	23.8%	3.8	Increased	--	24.9%	--
Two or More	19	42.1%	-2.9	Declined	--	21.6%	--	11	36.4%	-5.7	Declined	--	16.2%	--	10	*	*	*	*	14.9%	*
White	51	41.2%	8.4	Increased	Red	18.5%	Higher	45	26.7%	-14.5	Declined	Orange	13.5%	Higher	35	20.0%	-6.7	Declined	Yellow	12.2%	Higher

Data Sources: California School Dashboard Research data files.

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

CA School Dashboard: Suspension Rate Indicator

This report shows the number of students who have been suspended at least once in the school year for all student groups in grades TK-12. A student is counted as suspended in the suspension rate only once regardless of multiple suspensions or multiple days of suspension. Please note that good performance on the Suspension Rate Indicator means having the lowest percentage of students suspended in the current year. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students with scores in the current and prior year, status and change are reported, but no performance level (color) will be reported. When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Suspension Rate Indicator - CA School Dashboard Indicator																					
Student Group	Dashboard 2023							Dashboard 2024							Dashboard 2025						
	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State
All Students	284	1.1%	-2.0	Declined Significantly	Green	3.5%	Lower	215	0.5%	-0.6	Declined	Blue	3.2%	Lower	154	0.6%	0.2	Maintained	Green	2.9%	Lower
African American/Black	16	6.3%	-16.8	Declined	--	8.8%	--	13	0.0%	-6.3	Declined	--	8.4%	--	12	0.0%	0.0	Maintained	--	7.7%	--
English Learner	95	0.0%	-1.0	Declined	Blue	3.7%	Lower	79	0.0%	0.0	Maintained	Blue	3.4%	Lower	60	0.0%	0.0	Maintained	Blue	3.2%	Lower
Latino	180	0.6%	-1.6	Declined Significantly	Blue	3.8%	Lower	127	0.8%	0.2	Maintained	Green	3.4%	Lower	87	1.1%	0.4	Increased	Orange	3.0%	Lower
Long-Term English Learner	--	--	--	--	--	--	--	15	0.0%	0.0	Maintained	--	8.1%	--	9	*	*	*	*	7.0%	*
Socioeconomically Disadvantaged	256	1.2%	-1.6	Declined Significantly	Green	4.5%	Lower	191	0.5%	-0.6	Declined	Blue	4.0%	Lower	140	0.7%	0.2	Maintained	Green	3.6%	Lower
Students with Disabilities	29	0.0%	-4.5	Declined	--	5.9%	--	26	0.0%	0.0	Maintained	--	5.4%	--	22	0.0%	0.0	Maintained	--	5.0%	--
Two or More	19	0.0%	-5.0	Declined	--	3.3%	--	12	0.0%	0.0	Maintained	--	3.0%	--	10	*	*	*	*	2.8%	*
White	54	1.9%	1.9	Increased	Orange	2.9%	Lower	50	0.0%	-1.9	Declined	Blue	2.6%	Lower	37	0.0%	0.0	Maintained	Blue	2.4%	Lower

Data Sources: California School Dashboard Research data files.

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

Enrollment Report

This report displays CALPADS K-12 enrollment number and percentages of select student groups. Annual enrollment consists of the number of students primarily enrolled on Census Day (the first Wednesday in October). This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS). These data were reviewed and certified in CALPADS as being accurate by authorized district or school personnel. In order to certify data in CALPADS, authorized district or charter school personnel are required to review the accuracy of all data associated with the applicable CALPADS submission. The CDE collects some data on GATE programs through the CALPADS; however, this information is submitted by LEAs on a voluntary basis and it wouldn't necessarily be accurate as per CDE.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Enrollment by Ethnicity and Student Group						
Student Group	2023-2024			2024-2025		
	School	Los Angeles Unified	State of California	School	Los Angeles Unified	State of California
Enrollment	195	529,902	5,837,690	141	516,685	5,806,221
F/R Meal	84.6%	80.6%	61.6%	90.8%	81.9%	62.7%
GATE	0.0%	11.6%	N/A	0.0%	13.0%	N/A
English Learner	35.4%	20.1%	18.4%	29.8%	18.6%	17.4%
Foster Youth	0.0%	0.6%	0.5%	0.0%	0.5%	0.5%
Homeless Youth	0.0%	2.1%	3.6%	2.1%	2.7%	4.0%
Socioeconomically Disadvantaged	84.6%	81.3%	62.7%	90.8%	82.4%	63.6%
Students w/ Disabilities	9.2%	14.8%	13.7%	15.6%	15.6%	14.2%
Migrant Youth	0.0%	0.2%	0.8%	0.0%	0.2%	0.8%
African American/Black	4.6%	7.3%	4.9%	8.5%	7.1%	4.9%
American Indian or Alaska Native	0.0%	0.1%	0.4%	0.0%	0.1%	0.4%
Asian	4.6%	3.4%	9.9%	2.8%	3.3%	10.1%
Filipino	2.1%	1.7%	2.2%	2.1%	1.6%	2.2%
Latino	60.0%	73.8%	56.1%	55.3%	73.6%	56.1%
Native Hawaiian or Pacific Islander	0.0%	0.2%	0.4%	0.0%	0.2%	0.4%
White	21.0%	9.8%	20.3%	24.1%	9.7%	20.0%
Two or More Races	1.0%	2.0%	4.6%	1.4%	2.1%	4.8%
Not Reported	6.7%	1.8%	1.1%	5.7%	2.2%	1.2%

N/A: The CDE does not publish centralized, statewide Gifted and Talented Education (GATE) data.

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

Long-Term English Learners (LTEL) and “At-Risk”

Note: The “EL Total” column in this report displays the summed total of the disaggregated English Learner (EL) data in the four columns under the “English Learners” heading. The “Total (Ever-EL)” column displays the summed total of the data in the “RFEP” column plus the data in the four columns under the “English Learners” heading OR the data in the “EL Total” column, but not both. The percent values displayed in this report are calculated as a percent of the “Total (Ever-EL)” which fully and more accurately considers what happens to all EL students over time, including those who are Reclassified Fluent English Proficient (RFEP). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

	2022-2023						2023-2024						2024-2025					
	School		Los Angeles Unified		State of California		School		Los Angeles Unified		State of California		School		Los Angeles Unified		State of California	
English Learners	#	%	#	%	#	%	#	%	#	%	#	%	#	%	#	%	#	%
LTEL 6+ Years	10	8.9%	17,921	7.3%	226,508	11.1%	8	8.5%	15,302	6.5%	211,186	10.6%	5	8.5%	13,052	5.9%	198,853	10.4%
At-Risk 4-5 Years	12	10.7%	17,295	7.1%	144,189	7.1%	12	12.8%	15,717	6.7%	136,188	6.8%	5	8.5%	11,406	5.2%	115,009	6.0%
EL 0-3 Years	37	33.0%	60,457	24.7%	505,486	24.8%	36	38.3%	60,574	25.7%	519,651	26.0%	19	32.2%	57,726	26.1%	516,862	26.9%
EL 4+ Years & Not At-Risk or LTEL	21	18.8%	18,850	7.7%	236,319	11.6%	13	13.8%	14,725	6.2%	207,768	10.4%	13	22.0%	13,775	6.2%	178,306	9.3%
EL Total	80	71.4%	114,523	46.8%	1,112,502	54.5%	69	73.4%	106,318	45.0%	1,074,793	53.8%	42	71.2%	95,959	43.3%	1,009,030	52.6%
RFEP	32	28.6%	130,377	53.2%	927,694	45.5%	25	26.6%	129,789	55.0%	924,422	46.2%	17	28.8%	125,465	56.7%	909,298	47.4%
Total Ever EL	112	100.0%	244,900	100.0%	2,040,196	100.0%	94	100.0%	236,107	100.0%	1,999,215	100.0%	59	100.0%	221,424	100.0%	1,918,328	100.0%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesltel.asp>

New Horizons Charter Academy

Board District: 6 | Region: North | Location Code: 2263

Students with Disabilities Report

This report displays the K-12 enrollment and the number of K-12 students with disabilities total, by incidence category, and by eligibility as reported on the Census Day (First Wednesday in October) CALPADS Fall 1 Certified Student Profile List Report (Report 8.1) submitted by Local Education Agencies (LEAs). LEAs are required to "certify" specified data during submission windows. The CDE uses certified data for state and federal reporting and to develop accountability metrics. Once data are certified by an LEA following the close of the Amendment Window, they are "frozen" and cannot be amended. High Incidence is defined as students in the Other Health Impairment, Specific Learning Disability, and Speech or Language Impairment categories. Low Incidence Students are defined as those in the Autism, Deafness, Emotional Disturbance, Hard of Hearing, Intellectual Disability, Multiple Disabilities, Orthopedic Impairment, Traumatic Brain Injury, and Visual Impairment categories.

Special Education Enrollment by Category												
	2023-2024						2024-2025					
	School			Los Angeles Unified			School			Los Angeles Unified		
Total Enrollment	195			529,902			141			516,685		
Students with Disabilities	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment
Total SWD Enrollment	18	100%	9.2%	78,319	100%	14.8%	22	100%	15.6%	80,505	100%	15.6%
High Incidence	17	94.4%	8.7%	52,153	66.6%	9.8%	22	100%	15.6%	52,412	65.1%	10.1%
Low Incidence	1	5.6%	0.5%	26,162	33.4%	4.9%	0	0%	0%	28,084	34.9%	5.4%
Autism	1	5.6%	0.5%	18,713	23.9%	3.5%	0	0%	0%	20,802	25.8%	4%
Deaf-Blindness	0	0%	0%	4	0%	0%	0	0%	0%	7	0%	0%
Deafness	0	0%	0%	188	0.2%	0%	0	0%	0%	178	0.2%	0%
Emotional Disturbance	0	0%	0%	1,148	1.5%	0.2%	0	0%	0%	1,082	1.3%	0.2%
Established Medical Disability	0	0%	0%	0	0%	0%	0	0%	0%	1	0%	0%
Hard of Hearing	0	0%	0%	971	1.2%	0.2%	0	0%	0%	931	1.2%	0.2%
Intellectual Disability	0	0%	0%	3,393	4.3%	0.6%	0	0%	0%	3,381	4.2%	0.7%
Multiple Disabilities	0	0%	0%	965	1.2%	0.2%	0	0%	0%	1,035	1.3%	0.2%
Other Health Impairment	4	22.2%	2.1%	10,930	14%	2.1%	6	27.3%	4.3%	11,596	14.4%	2.2%
Orthopedic Impairment	0	0%	0%	533	0.7%	0.1%	0	0%	0%	434	0.5%	0.1%
Specific Learning Disability	7	38.9%	3.6%	29,615	37.8%	5.6%	9	40.9%	6.4%	29,368	36.5%	5.7%
Speech or Language Impairment	6	33.3%	3.1%	11,608	14.8%	2.2%	7	31.8%	5%	11,448	14.2%	2.2%
Traumatic Brain Injury	0	0%	0%	66	0.1%	0%	0	0%	0%	66	0.1%	0%
Visual Impairment	0	0%	0%	185	0.2%	0%	0	0%	0%	175	0.2%	0%

Data Source: CALPADS 8.1 FALL 1 Certified Report. This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS).

ATTACHMENT C
New Horizons Charter Academy

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Resident Schools Data Set

Academic Performance Medians- English Language Arts

2022-2023 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator						
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter Performance Level (color)	Charter (DFS)	Charter to Resident Comparison (DFS)
New Horizons Charter Academy	N/A	All Students	152	Orange	-39.8	
Resident Schools	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Comparison (DFS)
Roy Romer Middle	9%	All Students	755	Red	-78.1	Higher
Sun Valley Magnet	N/A	All Students	904	Orange	-63.6	Higher
Victory Boulevard Elementary	N/A	All Students	213	Orange	-33.6	Lower
Resident Schools Median	N/A	All Students	1,872	Orange	-63.6	Higher

Data Sources: California School 2023 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

New Horizons Charter Academy 2022-2023 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	152	Orange	-39.8	1,872	Orange	-63.6	Higher
Latino	104	Orange	-47.4	1,701	Orange	-64.7	Higher
English Learner	49	Red	-91.0	639	Orange	-106.1	Higher
Socioeconomically Disadvantaged	137	Orange	-40.0	1,591	Orange	-65.3	Higher

Data Sources: California School 2023 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator						
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter Performance Level (color)	Charter (DFS)	Charter to Resident Comparison (DFS)
New Horizons Charter Academy	N/A	All Students	138	Yellow	-32.0	
Resident Schools	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Comparison (DFS)
Roy Romer Middle	9%	All Students	696	Yellow	-52.4	Higher
Sun Valley Magnet	N/A	All Students	909	Yellow	-58.5	Higher
Victory Boulevard Elementary	N/A	All Students	220	Green	-4.0	Lower
Resident Schools Median	N/A	All Students	1,825	Yellow	-52.4	Higher

Data Sources: California School 2024 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

New Horizons Charter Academy 2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	138	Yellow	-32.0	1,825	Yellow	-52.4	Higher
Latino	84	Orange	-46.5	1,639	Yellow	-53.5	Higher
White	32	No Color	-13.5	85	Yellow	-57.5	Higher
English Learner	52	Orange	-79.3	687	Orange	-91.8	Higher
Socioeconomically Disadvantaged	123	Yellow	-33.7	1,721	Yellow	-53.8	Higher

Data Sources: California School 2024 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

2024-2025 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator						
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter Performance Level (color)	Charter (DFS)	Charter to Resident Comparison (DFS)
New Horizons Charter Academy	N/A	All Students	99	Green	4.1	
Resident Schools	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Comparison (DFS)
Roy Romer Middle	9%	All Students	635	Yellow	-44.8	Higher
Sun Valley Magnet	N/A	All Students	912	Yellow	-44.8	Higher
Victory Boulevard Elementary	N/A	All Students	218	Orange	-9.7	Higher
Resident Schools Median	N/A	All Students	1,765	Yellow	-44.8	Higher

Data Sources: California School 2025 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

New Horizons Charter Academy 2024-2025 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	99	Green	4.1	1,765	Yellow	-44.8	Higher
Latino	58	Green	-2.2	1,579	Yellow	-44.3	Higher
English Learner	41	Yellow	-12.1	728	Orange	-85.9	Higher
Socioeconomically Disadvantaged	89	Green	2.5	1,684	Yellow	-46.1	Higher

Data Sources: California School 2025 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

ATTACHMENT D

**FINDINGS OF FACT IN SUPPORT OF DENIAL OF THE
RENEWAL CHARTER PETITION FOR
NEW HORIZONS CHARTER ACADEMY
BY THE LOS ANGELES UNIFIED SCHOOL DISTRICT**

BOARD OF EDUCATION REPORT
December 16, 2025

I. INTRODUCTION

On September 19, 2025, New Horizons Charter Academy (“Charter School,” “NHCA,” or “Petitioners”), submitted a renewal petition application (“Renewal Petition”) to the Charter Schools Division (“CSD”) of the Los Angeles Unified School District (“LAUSD” or “District”), seeking to renew its charter to serve up to 300 students in grades TK-8 for a five-year term, July 1, 2026, to June 30, 2031. (*See* Exhibit 1, New Horizons Charter Academy Renewal Petition). Charter School currently operates on a Proposition 39 site (Fair Avenue Elementary), which is located in Board District 6 and Region North. Charter School is operated by Dharma Educational Institute (“Dharma”), a California nonprofit public benefit corporation that does not operate any other LAUSD-authorized school.

Pursuant to the Charter Schools Act (Ed. Code § 47600 *et seq.*) and the adopted *LAUSD Policy and Procedures for Charter Schools* (“LAUSD policy” or “District policy”), LAUSD’s Board of Education (“Board”) has 90 days upon receipt of the renewal petition to either grant or deny the renewal petition unless an extension of an additional 30 days is mutually agreed upon by the parties. No later than 60 days following receipt of the renewal petition, the LAUSD Board must hold an initial public hearing to consider the level of support for the renewal petition by teachers employed by the District, other employees of the District, and parents. At the second public hearing, at which the Board will either grant or deny the charter, the petitioner shall have equivalent time and procedures to present evidence and testimony to respond to District staff’s recommendation and findings. The LAUSD Board must publish all staff recommendations, including the recommended findings regarding the renewal petition, at least 15 days before the public hearing at which the LAUSD Board will either grant or deny the renewal petition.

The District evaluates renewals petitions in accordance with the standards and criteria specified in the Charter Schools Act. Based on a comprehensive review of the Renewal Petition application and the record of performance of Charter School, as described in greater detail below, District staff has determined that Charter School has not met the requirements set forth in Education Code sections 47605, 47607, and 47607.2, and therefore recommends denial of the Renewal Petition.

II. CRITERIA FOR RENEWAL AND GROUNDS FOR NONRENEWAL

Upon submission, District staff comprehensively reviews each renewal petition application to determine whether the charter school has met the requirements for renewal set forth in Education Code sections 47605, 47607, 47607.2 and 47611.5. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

Criterion 1:

The Charter Schools Act provides that renewals are governed by the standards and criteria described in Education Code section 47605 applicable to initial petitions. The first criterion considered in reviewing a renewal petition requires an analysis of the following:

- Whether the petition includes a sound educational program;
- Whether the petition contains a reasonably comprehensive description of the 15 elements required for petitions;
- Whether the petition contains an affirmation of each of the conditions described in Education Code section 47605(e); and
- Whether petitioners are not demonstrably unlikely to successfully implement the program set forth in the petition. Education Code section 47607(b) provides that renewals are governed by the standards and criteria described in section 47605 applicable to initial petitions.

While Criterion 1 is similar to the criteria for a new petition, for renewal petitions, there is more information and data regarding past performance since the initial petition for establishment of the charter school was granted. Thus, soundness of the educational program and capacity for implementation are assessed through the past performance of the existing charter school as indicators of likely future performance, including any applicable benchmarks that have been established. The LAUSD Board will examine the charter school's record in four key areas of charter school performance:

- 1) Governance
- 2) Student Achievement and Educational Performance
- 3) Organizational Management, Programs and Operations
- 4) Fiscal Operations

As part of its analysis, the LAUSD Board is to assess the extent to which charter school governing board members and staff have successfully implemented the terms of their charter, addressed deficiencies, and demonstrated capacity to continue to do so in the future based on evidence of past performance.¹

Criterion 2:

The LAUSD Board is required to consider the charter school's performance on the California School Dashboard accountability indicators. Education Code sections 47607 and 47607.2 prescribe three-tiers of performance classification in which a charter school falls within one of the following categories - "high," "middle," or "low" performing. The state will publish an annual list of charter schools and their performance classification.

¹ See LAUSD policy, pp. 28-29.

The three-tier classification considers a charter school's performance on the California School Dashboard accountability indicators, with an emphasis on the measurements of academic performance. "Measurements of academic performance" refers to the state indicators included on the California School Dashboard that are based on statewide assessments in the California Assessment of Student Performance and Progress System (CAASPP), or any successor system, English Learner Progress Indicator (ELPI), or any successor system, and the College/Career Indicator (CCI). A charter school submitting a renewal petition should include in its application all evidence and data related to the charter school's performance on the California School Dashboard.

Middle Performing Charter Schools

For all charter schools that do not meet the High performing or Low performing criteria, the LAUSD Board shall consider the charter school under Middle performing criteria. (Ed. Code, § 47607.2(b)(1).) Pursuant to Education Code section 47607.2(b), the LAUSD Board shall consider the following:

- (1) The schoolwide performance and performance of all student groups of pupils served by the charter school on both the state and local indicators on the California School Dashboard;
- (2) The LAUSD Board shall provide greater weight to the performance on measurements of academic performance on the California School Dashboard;
- (3) Until January 1, 2026, the LAUSD Board shall also consider clear and convincing evidence, demonstrated by verified data, showing either of the following:
 - a. The charter school achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school, or
 - b. Strong postsecondary outcomes, as defined by college enrollment, persistence, and completion rates equal to similar peers.

Effective January 1, 2021, pursuant to Education Code section 47607.2(c)(2), the State Board of Education adopted criteria to define verified data² and identified an approved list of valid and reliable assessments.³ Staff's review of Charter School's submitted materials will be based on verified data sources and related information adopted by the State Board of Education. (Ed. Code, § 47607.2(c)(3)). Charter schools submitting verified data for this purpose must adhere to the state-approved criteria.

The LAUSD Board may deny a renewal of a Middle performing charter school pursuant to Education Code section 47607.2(b) upon making each of the following written factual findings:

² "Verified data" means data derived from nationally recognized, valid, peer-reviewed, and reliable sources that are externally produced. (Ed. Code, §47607.2(c)(2).)

³ <https://www.cde.ca.gov/sp/ch/verifdatacrit.asp>

- (1) The charter school has failed to meet or make sufficient progress toward meeting standards that provide a benefit to pupils of the school;
- (2) The closure of the charter school is in the best interest of the pupils; and
- (3) The decision provided greater weight to the performance on the measurements of academic performance.

When determining whether to deny a renewal petition under prong 1 or 2, LAUSD will consider the full oversight record of the charter school, providing greater weight to performance on the measurements of academic performance. This consideration will include a comparison to Resident Schools' performance on the measurements of academic performance (e.g., Long-term English Learner (LTEL) rates, and percentage of students Met or Exceeded Standards as measured on the CAASPP as compared to the state averages, California School Dashboard data, four-year cohort graduation rates). A list of Resident Schools is generated, based on students' addresses as reported in CALPADS.

As a Middle performing charter school, if renewed, the chartering authority (LAUSD Board) must grant a renewal for a period of five years. (Ed. Code, § 47607.2(b)(7).)⁴

Criterion 3:

Notwithstanding Criterion 1 and 2, the LAUSD Board will also consider whether the charter school's enrollment or dismissal practices are discriminatory as grounds for nonrenewal. (Ed. Code, § 47607(e).) Additionally, the LAUSD Board shall consider whether the charter school has substantial fiscal or governance factors as grounds for nonrenewal. (*Id.*)

Specifically, the LAUSD Board may deny renewal of any charter petition, regardless of whether the charter school satisfies the High, Middle, or Low performing criteria, upon a finding that either:

- (1) The charter school is demonstrably unlikely to successfully implement the program set forth in the renewal petition due to either:
 - (a) Substantial fiscal factors, or
 - (b) Substantial governance factors.

Pursuant to the District Policy, substantial fiscal factors may include, but are not limited to, issues related to the charter school's fiscal solvency, mismanagement of funds, cash flow concerns, or outstanding financial liabilities owed to the District and/or others (e.g., contractual obligations, judgments/settlements, unpaid bills or debts, fee-for-service arrangements, facilities related costs, Prop. 39 over-allocated space reimbursements, etc.). Substantial governance factors may include, but are not limited to, issues related to the retention of faculty (such as school leadership and teachers) which rise to the level of disruption of delivery of educational programs; conflicts of interest; or, violations of the Brown Act or

⁴ See LAUSD policy, p. 35-37.

California Public Records Act.

- (2) The charter school is not serving the pupils who wish to attend.

Upon a finding that the charter school is not serving all pupils who wish to attend, LAUSD must identify evidence supporting this finding, including aggregate data reflecting pupil enrollment patterns at the charter school. (Ed. Code, § 47607(d).)⁵

Prior to a nonrenewal determination pursuant to number 1 or 2 noted above, LAUSD shall provide the charter school with at least 30 days' notice of the alleged violation and provide the charter school with a reasonable opportunity to cure the violation, including providing an opportunity for the charter school to present a proposed corrective plan. (Ed. Code, § 47607(e).) After providing notice of the alleged violation and reasonable opportunity to cure the violation, the LAUSD Board may deny a renewal petition if it finds that either:

- 1) The corrective action proposed by the charter school has been unsuccessful, or
- 2) The violations are sufficiently severe and pervasive as to render a corrective action plan unviable.

III. FINDINGS OF FACT IN SUPPORT OF DENIAL OF CHARTER RENEWAL

Based on a comprehensive review of Charter School's Renewal Petition application and Charter School's record of performance, District staff recommends that the LAUSD Board **deny** the renewal and adopt these *Findings of Fact In Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy* based on the following ground(s):

- Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition due to substantial fiscal and governance factors. (Ed. Code, § 47607(e).) (Criterion 3)
- Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition. (Ed. Code, § 47605(c)(2).) (Criterion 1)

A. Charter School is demonstrably unlikely to successfully implement the program set forth in the Renewal Petition due to substantial fiscal and governance factors (Ed. Code § 47607(e)), as indicated by the following findings:

On July 8, 2025, the District issued Charter School a Notice of Alleged Violations ("NOAV") pursuant to Education Code section 47607(e). (See Criterion 3 above.) The NOAV provided facts to identify substantial fiscal and governance factors and concerns regarding Charter School's fiscal operations and management (e.g., potential misuse of public funds involving school leadership), Charter School's governing board's ("Charter School Board" or "Dharma Board") overall capacity and effectiveness in overseeing

⁵ See LAUSD Policy, pp. 37-38.

Charter School’s fiscal operations, and outstanding financial liabilities owed to the District and outlined the legal bases for corrective actions. The District’s NOAV also indicated that failing to take corrective actions in response to the NOAV could lead to LAUSD’s recommended denial of Charter School’s renewal petition based on either of the following findings: (1) the corrective action has been unsuccessful; or (2) the violations are sufficiently severe and pervasive as to render a corrective action plan unviable. (Ed. Code, § 47607(e).) Attached herein is a copy of the NOAV along with the accompanying documentation. (*See* Exhibit 2, District’s Notice of Alleged Violations July 8, 2025).

The District requested that Charter School provide a response to the NOAV by August 15, 2025, as consistent with the timeline set forth by statute. On August 15, 2025, and September 24, 2025, Charter School responded to the NOAV by submitting updated fiscal policies and procedures (“FPPs”) implemented by the Dharma Board. Charter School’s response also indicated that the organization completed trainings and discussed the governance expectations outlined in the FPPs. However, Charter School’s response did not sufficiently address the alleged violations noted in the NOAV and failed to include documentation evidencing Charter School staff training on the revised FPPs, despite the District’s request for such evidence. Regarding Charter School’s review of the noted financial transactions, the Dharma Board’s plan was to engage Charter School’s back-office services provider—a contracted vendor, which is also identified as the onsite Finance Manager in Charter School’s Renewal Petition—to conduct further review of the fiscal transactions, raising concerns about the independence and objectivity of the review. More specifically, this vendor is directly responsible for maintaining Charter School’s financial records, and as such, the vendor would be in a position of reviewing its own work. Thus, the vendor’s relationship with Charter School creates an apparent conflict of interest and impairs the third-party reviewer’s independence. Furthermore, Charter School Board did not provide a plan to ensure full payment of all amounts owed to the District as identified in the NOAV. The above and below present a significant financial and capacity concern and leads to the conclusion that Charter School is at high risk of mismanaging public/educational funds and faces substantial challenges with its fiscal operations. Notwithstanding Charter School’s response to the NOAV, as shown below, the corrective action plan proposed by Charter School has been unsuccessful. (Ed. Code, § 47607(e).)

As explained in greater detail below, Charter School has failed to successfully address all District issued corrective actions to date, as noted in the District’s tiered intervention notices including its response to the NOAV.

a. Ongoing Fiscal Operations and Management Concerns at Charter School

Due to the key issues identified in both the 2023-2024 and 2024-2025 Annual Performance-Based Oversight Reports (“Oversight Report”), four (4) tiered intervention notices were issued detailing the significant concerns about Charter School Board’s overall capacity and effectiveness in overseeing NHCA’s fiscal operations. The District observed recurring issues and patterns of potential misuse

of public/educational funds and thus warranted corrective actions to be taken by the Dharma Board. (See the summary table below.)

As documented in the 2023-2024 Oversight Report issued to Charter School on June 28, 2024, and as part of the District's ongoing oversight and fiscal review of Charter School, District staff observed Charter School's potential misuse of public/educational funds; questionable spending and expense reimbursements involving NHCA Executive Director ("ED")/Principal that lacked sufficient supporting documentation and demonstrated non-adherence to the Dharma Board-approved fiscal policies and procedures; and inadequate oversight by Charter School Board of its fiscal operations. Based on District staff's 2023-2024 oversight review, the District issued a Notice of Concern ("NOC") on July 1, 2024, followed by a Notice to Cure ("NTC") on January 13, 2025, due to Charter School's insufficient response and documentation. Staff's observations included the following:

- Based on the sample expense reimbursement transactions review, the CSD noted 22 transactions totaling \$8,256.50, incurred between December 2021 and May 2023, for which the expenses claimed by the NHCA ED/Principal lacked the required travel expense reimbursement forms and/or itemized receipts, as stipulated in NHCA's FPPs. Additionally, 33 travel reimbursement requests totaling \$7,486.22 were submitted past the stipulated timeline (i.e., within 60 days of travel or no later than July 31), as required by NHCA's FPPs, yet were still approved by the then-NHCA Board Chair through a Check Request Form despite the late submission.
- Based on the review of the documentation relating to the above expense reimbursements, District staff noted that the NHCA ED/Principal did not provide sufficient business justification as to how certain meals and parking expenses were related to educational purposes and/or would benefit Charter School's students. Specifically, these lunch and dinner meetings were held at expensive restaurants, located in various cities in Los Angeles County with no apparent proximity to Charter School, and held on the weekend (i.e., Friday night, Saturday, or Sunday). Moreover, the CSD noted hotel accommodation reimbursements to the NHCA ED/Principal exceeded the prevailing Federal Per Diem rate, a standard included in the Dharma Board's then-approved fiscal policies and procedures but not consistently applied. These expense reimbursement requests were approved by the then-NHCA Board Chair despite insufficient information/documentation and non-adherence to Charter School's FPPs.

In response to the NOC issued on July 1, 2024, Charter School submitted the fiscal agenda from the 2023-2024 oversight visit, board meeting minutes from July 12, 2024, and an action plan for each observation, instead of a Board-Chair-signed action plan as requested in the NOC. The action plan included measures to ensure that itemized receipts are submitted within the timeline specified in NHCA's FPPs, and include any relevant meeting agendas, discussion topics, and business justification(s). In addition, Charter School stated that most of the meal

expenses were funded by the High School Development Grant from Great Public Schools Now (“GPSN”).⁶ Following its review of NHCA’s response, the District issued a follow-up to the NOC on August 28, 2024, to address remaining issues and additional concerns related to the High School Grant. NHCA’s September 18, 2024, response did not sufficiently resolve the outstanding fiscal concerns. Consequently, the District elevated the matter to a NTC to address the unresolved issues, including conflicting and overly generous meal policies that deviate from the Federal Per Diem Rate standards and best business practices, as well as discrepancies in the High School Grant balance. NHCA subsequently revised its FPPs to establish consistent meal policies, and reconciled and adjusted the High School Grant balance.

However, based on staff’s 2024-2025 oversight review, the District lowered Charter School’s rating in Fiscal Operations to “*Unsatisfactory*,” the lowest oversight rating, due to additional fiscal concerns, primarily due to the presence of altered documentation, recurring patterns of non-compliance and potential misuse of public/educational funds. Most recently, on July 8, 2025, the District issued a NOAV, requiring immediate action by Charter School Board to address the ongoing fiscal operations and management concerns. As documented in the 2024-2025 Oversight Report issued to Charter School on June 30, 2025, staff identified instances of altered documentation such as board meeting minutes (dated December 15, 2022)⁷ and documentation related to GPSN’s no-cost extension letter (dated May 2, 2025).⁸ Additionally, similar to the CSD’s observations cited in NHCA’s 2023-2024 Oversight Report, and the July 1, 2024, NOC and January 13, 2025 NTC described above, staff observed ***patterns of potential fund misuse*** by school leaders that required the Dharma Board’s immediate review and corrective action. For example, the CSD’s 2024-2025 oversight review observed multiple instances of inappropriate spending on credit cards by NHCA leadership, including the NHCA ED/Principal, and noncompliance with the organization’s credit card policies as well as best business practices:

- The CSD’s review of credit card documentation from August to December 2024 found that over 73% of transactions on the account assigned to NHCA’s ED/Principal and 31% on the account assigned to the NHCA HR/Payroll Manager were supported only by “Missing Receipt Declaration” forms, with vague descriptions such as “School Use.” Additionally, 23% of transactions on the NHCA HR/Payroll Manager’s account and 18% on the NHCA ED/Principal’s account lacked any supporting documentation.

⁶ On December 17, 2018, GPSN approved Charter School’s grant request to support the planning of “New Horizons Charter High School Academy” and its development and submission of a charter petition to open the school in 2019. The grant amount was \$50,000. On May 2, 2025, GPSN granted a no-cost extension until June 30, 2026, to allow NHCA to utilize the remaining balance of \$36,572.72 from the total grant award of \$50,000.

⁷ District staff noted that the December 15, 2022, Board meeting minutes appeared to be revised to include the approval of the Employee Retention Credit application without evidence of ratification as of the issuance of the NOAV.

⁸ GPSN confirmed that the amount indicated in its No-Cost Award Extension Letter was not authorized and had been apparently changed by NHCA after the original letter was issued on May 2, 2025.

- Based on its sample credit card transaction review, the CSD noted multiple online subscriptions charged to the NHCA ED/Principal's credit card account, supported initially by the "Missing Receipt Declaration" forms, that lack clear and thorough explanations/documentation to demonstrate that these subscriptions were intended for public and/or educational purposes. In response to the CSD's follow-up inquiries, the NHCA ED/Principal provided explanations for the online subscriptions. However, the NHCA ED/Principal provided no supporting documentation evidencing that these multiple online subscriptions (e.g., three Amazon Prime accounts and six Apple services accounts) provided a direct public and/or educational benefit to NHCA's students.
- Based on the CSD's review of the six-month credit card statements from August 2024 through January 2025, meal expenditures appear frequent and/or routine. The documentation to support the sampled meal expenses included agendas listing expected participants, suggesting that the meals were related to operations training and professional development. However, for the sample transactions selected by the CSD, sign-in sheets or other forms of attendee verification were not included to confirm actual participation at the event(s).
- Based on the check disbursement sample review, the CSD noted three (3) employee reimbursement checks and two (2) petty cash replenishments payable to the NHCA ED/Principal—an authorized signer—signed by the payee himself and lacking documented approval from another authorized individual (i.e., Board Chairman/Board Secretary stipulated in NHCA's policy). Additionally, in some cases, NHCA acted only after the fact or provided supporting documents solely in response to the CSD's inquiries, appearing retroactive. For example, a \$7,200 reimbursement check dated August 28, 2024, made payable to and approved by the NHCA ED/Principal, for a van purchase, lacked proof of Board approval as required by NHCA's policy. The documentation furnished to the District staff reveals that the Department of Motor Vehicles ("DMV") registration dated April 2, 2025, and Certification of Title dated April 23, 2025, took place only after the CSD's inquiry of this purchase on March 24, 2025—more than seven months after the automobile was purchased (i.e., August 17, 2024 based on the Bill of Sale furnished to the CSD).
- Further, District staff identified instances where the NHCA ED/Principal reimbursed himself through petty cash replenishments, bypassing the NHCA Board's review and approval.

On August 15, 2025, and September 24, 2025, Charter School Board submitted responses stating that it had implemented changes to the organization's fiscal policies and procedures, completed the necessary trainings, and discussed the governance expectations outlined in the FPPs. Changes to the FPPs include

reducing the credit card limits that require board approval, lowering the NHCA ED/Principal's purchasing threshold, revising petty cash procedures, and modifying the approval process for the NHCA ED/Principal. Charter School Board stated that the altered documentation was unintentional. Additionally, Charter School Board reported plans to engage Charter School's current back-office services provider to conduct an investigation into the proper application of the FPPs.

Although Charter School Board stated that it will continue to review monthly charges, supporting documents, and the appropriateness of expenditures, its response did not present an effective plan to strengthen board oversight and governance of the unsupported and unsupervised financial transactions incurred by its school leaders, as noted in the District's tiered intervention notices. Charter School Board's response lacks a robust system for identifying, assessing, and mitigating financial and operational risks, and does not include regular evaluations to hold individuals accountable for their actions and results. The plan focuses primarily on applying fiscal policies and procedures rather than on fostering an organizational culture that emphasizes integrity, ethics, and accountability, including appropriate disciplinary action. Additionally, Charter School Board's plan to hire Charter School's back-office services provider to conduct an investigation raises concern regarding the independence and objectivity of the review.

b. Financial Liabilities Owed to the District

As of the date of this report and pursuant to a Proposition 39 alternative agreement with the District, Dharma (on behalf of Charter School) is contractually obligated to pay the District a fee of \$500 per calendar day from December 21, 2024 until the date that Charter School fully vacates all of the spaces allocated at the Fair Avenue Elementary School campus.⁹ Charter School has indicated that the Dharma Board would work with its legal team on a potential payment plan for the foregoing Proposition 39-related debts once it vacates Fair Avenue Elementary School, but Charter School's response did not provide an effective plan to ensure prompt and full payment of all amounts owed to the District.

These issues and observations collectively raise substantial concerns about the Dharma Board's overall capacity and effectiveness in overseeing Charter School's fiscal operations. Due to NHCA school leadership's continued failure to adhere to its governing board-approved fiscal policies and procedures, as well as District and charter requirements, the District remains concerned about Charter School's ability to maintain sound fiscal practices within the educational setting.

⁹ The Term of the Single-Year Co-location Charter School Facilities Use Agreement for the 2024-2025 school year (as amended) between Dharma and the District expired on August 4, 2025. Dharma (on behalf of Charter School) would have owed \$113,000 if Charter School vacated on August 4, 2025. However, to date, Charter School remains at Fair Avenue Elementary School and Dharma has not paid the fee to the District as the \$500/day fee continues to accrue as a growing liability until Charter School fully vacates. Dharma will owe the District \$172,000, \$187,500, or \$278,000 if Charter School vacates on November 30, 2025, December 31, 2025, or June 30, 2026, respectively.

As discussed above, in response to the ongoing oversight concerns, the District issued multiple fiscal-related notices, summarized below.

Date	Type of Notice (NOC or NTC or NOAV)	Issue/Topic/Status	Resolved (Y/N)
7/1/2024	Notice of Concern	Potential misuse of public funds and non-adherence to Charter School's board approved fiscal policies and procedures; unsound fiscal practices related to travel and expense reimbursements, meal expenditures, and the utilization and recording of the GPSN High School Grant.	No Elevated to NTC and ultimately NOAV.
1/13/2025	Notice to Cure	Elevated from an NOC (July 1, 2024) to an NTC (January 13, 2025) and ultimately NOAV. The school had not fully addressed the actions outlined in the notice regarding meal policies and expenditure reconciliation related to the GPSN High School Grant.	No Elevated to NOAV (due to patterns of potential fund misuse).
5/15/2025	Notice of Concern	2023-2024 audit finding identified a material weakness concerning internal controls related to the restatement of net assets and preparation of the financial statements. On June 11, 2025, the Dharma Board provided its response, which included additional action plans, such as having the NHCA back-office services provider review revenues and expenses with the NHCA ED/Principal to ensure proper coding and classification, and presenting any outstanding items during monthly financial reports to keep the Dharma Board informed and ensure accurate accounting by appropriate year and resource code. The District will continue to monitor the school's action plan implementation, including reviewing NHCA's 2024-2025 independent audit report.	Ongoing

Date	Type of Notice (NOC or NTC or NOAV)	Issue/Topic/Status	Resolved (Y/N)
7/8/2025	Notice of Alleged Violations	Key Issues Identified in the 2024-2025 Oversight Report as detailed above. The District sent a follow-up on 9/26/2025 requesting documentation of the training and the third-party review, with a response due by 10/10/2025. On 11/4/2025, Charter School's ED/Principal provided a letter from its back-office services provider, indicating that "New Horizons Charter Academy's Executive Director is operating in compliance with the updated Accounting Fiscal Policies and Procedures." However, the District's concerns remain as described above. Additionally, Charter School's response did not provide an effective plan to ensure full payment of all amounts owed to the District.	No

As detailed above, Charter School's responses to the recent NOAV issued on July 8, 2025, did not present an effective plan for improving oversight and governance. The ongoing and unresolved nature of these issues/factors demonstrates that Charter School's fiscal operational plans and corrective actions have been unsuccessful, making it demonstrably unlikely to successfully implement its educational program during the proposed charter term described in its renewal petition due to substantial fiscal and governance factors. These factors, which have been repeatedly raised and documented (including the NOAV) over the past two years of Charter School's current charter term through LAUSD's tiered intervention process, remain unresolved and continue to significantly undermine Charter School's ability to sustain and deliver a stable and effective educational program.

Therefore, as established above, the Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition due to substantial fiscal and governance factors. (Ed. Code, § 47607(e)).

B. Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition (Ed. Code § 47605(c)(2)), as indicated by the following findings:

In evaluating whether a petitioner is demonstrably unlikely to successfully

implement¹⁰ the program set forth in the renewal petition, the LAUSD Board assesses a variety of factors. (See LAUSD policy, pgs. 12-13.) Based on the grounds and analyses set forth below, the Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition. (Ed. Code, § 47605(c)(2).)

a. Deteriorating Fiscal Condition and Risk of Fiscal Insolvency

Charter School is facing deteriorating net assets due to significant declines in student enrollment over the past three years. Charter School lost over 30 TK/K-4th grade students in Fiscal Year 2023-2024, which it attributed to the relocation from a previous private site to the current Proposition 39 co-location site.¹¹ Charter School has projected additional loss in Fiscal Year 2024-2025, which may have resulted from the significant delays in the relocation to its new private site, approved as part of the material revision application by the LAUSD Board of Education on December 12, 2023.¹² As reflected in the Financial Highlights table below, Charter School reported a net loss of (\$155,431) in 2023-2024 and projected a net loss of (\$367,651) in 2024-2025. As a result, Charter School did not meet the minimum recommended levels for cash reserve level and current ratio in Fiscal Year 2024-2025.

¹⁰ The policy for "demonstrably unlikely to successfully implement the program" includes factors and guidance promulgated by the State Board of Education. See Title 5 California Code of Regulations, section 11967.5.1.

¹¹ NHCA entered into a Proposition 39 co-location Facilities Use Agreement to occupy space at Fair Avenue Elementary beginning in the 2015-2016 school year for the 5th through 8th grade students. Prior to the lease termination on July 31, 2023, NHCA's TK/K to 4th grade students were located at the private site, 5955 Lankershim Blvd., North Hollywood, CA 91601.

¹² On December 12, 2023, the LAUSD Board of Education approved NHCA's material revision application for its proposed new private facility located at 14701 Friar Street, Van Nuys, CA 91411, in Board District 3 and Region North. This proposed move from the current Proposition 39 site to this private facility is within an approximately four-mile radius from Charter School's current community, which partially overlaps with the new community. Charter School proposed to begin operations at the new private site in the 2024-2025 school year. As of the writing of this report, Charter School has not relocated to this new site, citing delays with permits due to Los Angeles Department of Water and Power delays, cash shortage, completion of final electronic components, etc. Staff also noted that Charter School did not secure a financing loan until April 2025. The loan financing commitment submitted during the material revision process did not materialize.

FINANCIAL HIGHLIGHTS					
	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Audited Actuals)	2024-2025 (Unaudited Actuals)
Net Assets	\$1,477,579	\$1,938,208	\$2,216,276	\$2,060,845	\$1,693,194
Net Income / (Loss)	\$980,361	\$460,630	\$278,068	(\$155,431)	(\$367,651)
Transfers In / Out	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0
Cash and Cash Equivalents	\$910,696	\$1,851,084	\$3,447,298	\$1,849,206	\$130,406
Unrestricted Net Assets	\$1,477,579	\$1,938,208	\$2,129,696	\$2,060,845	\$1,693,194
Norm Enrollment Reported by the School	295	263	258	195	141
FINANCIAL RATIO ANALYSIS					
Fund Reserve (Reserve for Economic Uncertainty) (Unrestricted Net Assets/Total Expenditures) <i>3% - 5% and greater is recommended (depending on the school's ADA)</i>	39.20%	44.08%	40.91%	41.95%	46.35%
Cash Reserve Level (Cash Balance/Total Expenditures) <i>5% and greater is recommended</i>	24.16%	42.10%	66.22%	37.64%	3.57%
Current Ratio (Working Capital Ratio) (Current Assets/Current Liabilities) <i>At least 1.2 or 120% is recommended</i>	310.43%	289.99%	183.54%	139.19%	93.58%
Debt Ratio (Total Liabilities/Total Assets) <i>Lower than 1.0 or 100% is recommended</i>	30.72%	33.33%	51.81%	83.60%	85.84%

b. Charter School's Continued Declining Student Enrollment

Charter School's continued declining student enrollment over the most recent three years raises concerns. This trend may exacerbate Charter School's deteriorating fiscal condition, as the Local Control Funding Formula ("LCFF") revenue is directly tied to enrollment and Average Daily Attendance ("ADA").

Charter School's reported Norm Enrollment was 263, 258, 195, 141, and 132 students for Fiscal Years 2021-2022 through 2025-2026, respectively. This represents a cumulative decrease of 131 students (or 49.8%) since Fiscal Year 2021-2022, including a decrease of 63 students (32.2%) over the most recent three years. Charter School's reported Norm Enrollment for Fiscal Year 2025-2026 is 132 students, which is 168 students (or approximately 56.0%) below its approved

enrollment capacity in Charter School's operative charter (i.e., 300 students). Additionally, Charter School reported 2024-2025 P-1 ADA of 132.37 and P-2 ADA of 130.66, respectively.

The tables below reflect Charter School's projected enrollment in its operative charter (Table 1) and the Norm Enrollment history (Table 2) since Fiscal Year 2021-2022, reflecting that Charter School has been under-enrolled for all five fiscal years. Charter School's declining student enrollment further undermines its financial plan, as reduced enrollment directly decreases revenue, making its proposed budget submitted with the petition unsuccessful, and thus, heightening the risk of fiscal insolvency.

Table 1: Charter School's Enrollment Rollout Plan as Outlined in Its Operative Charter					
Grade Level	2021-2022	2022-2023	2023-2024	2024-2025	2025-2026
TK-K	33	33	33	33	33
1	33	33	33	33	33
2	33	33	33	33	33
3	33	33	33	33	33
4	33	33	33	33	33
5	33	33	33	33	33
6	34	34	34	34	34
7	34	34	34	34	34
8	34	34	34	34	34
Total Projected Enrollment (A)	300	300	300	300	300

Table 2: Charter School's Norm Day Enrollment History					
Grade Level	2021-2022	2022-2023	2023-2024	2024-2025	2025-2026
TK	*	10	1	0	4
K	19	21	11	8	5
1	30	23	20	11	8
2	23	27	18	12	12
3	35	22	23	15	12
4	23	39	22	17	17
5	43	18	28	21	13
6	27	39	14	18	20
7	38	23	30	17	17
8	25	36	28	22	24
Total Enrollment (B)	263	258	195	141	132
Increase/(Decrease) in the # of Students Enrollment from Prior Year	Not applicable	(5)	(63)	(54)	(9)
% Increase/(Decrease) in the # of Students Enrollment from Prior Year	Not applicable	(1.9%)	(24.4%)	(27.7%)	(6.4%)
Under-Enrollment (Enrollment Rollout Plan vs Norm Day Enrollment) (B) - (A)	(37)	(42)	(105)	(159)	(168)

*Prior to Fiscal Year 2022-2023, TK and K counts were reported together. Therefore, the K counts (if applicable) include the TK counts for the school years prior to 2022-2023.

c. Unreliable and Unrealistic Petition Budget and Cash Flow Projections

Petitioners have presented an unreliable and unrealistic financial plan in support of Charter School's Renewal Petition application:

- o The budget submitted with the renewal petition relies on overly optimistic enrollment assumptions and revenue projections that are not supported by Charter School's enrollment over the most recent three years. **See Charter School's Norm Enrollment table (Table 2) above.** Despite a consistent trend of under-enrollment and a multi-year decline in student enrollment, Charter School projects a significant increase in enrollment, as outlined below. The petition does not provide an adequate comprehensive plan with supporting evidence describing how the school intends to achieve these increased enrollment projections for the current year and the future charter term that directly drive the projected revenue increases. As a result, it is unlikely that the Charter School will be able to meet its financial projections, in turn impacting its ability to meet its financial obligations, which significantly impacts its ability to sustain operations throughout the charter term.

Charter School's five-year student enrollment projections, submitted with the Renewal Petition, are summarized below:

Grade Level	2025-2026	2026-2027	2027-2028	2028-2029	2029-2030	2030-2031
TK	9	12	20	20	20	20
K	13	21	22	25	26	26
1	14	21	24	26	30	30
2	17	21	24	26	30	30
3	19	21	24	26	30	30
4	26	21	26	26	30	30
5	21	23	26	28	33	33
6	19	23	26	30	33	33
7	27	23	26	30	33	33
8	0	24	26	30	35	35
Total Projected Enrollment	165	210	244	267	300	300

Charter School projects 165 students for FY 2025-2026 in the budget submitted with its renewal petition, which represents a 25% increase in enrollment from its reported Norm Day Enrollment (i.e., 132 according to the Fiscal Year 2025-2026 Norm Enrollment data). The delay in relocating to the new school site, as part of Charter School's material revision request approved by the LAUSD Board of Education on December 12, 2023,¹³ may have partially contributed to the decline in

¹³ As noted above, Charter School stated that it planned to relocate to the private site at 14701 Friar Street, Van Nuys, CA 91411 beginning in the 2024-2025 school year. As of the writing of this document, Charter School has shared it currently anticipates relocating by November 30, 2025.

student enrollment for the 2024-2025 and 2025-2026 school years. For 2026-2027, Charter School projects 210 students, representing a 27% increase from its 2025- 2026 projection or a 59% increase from its 2025-2026 Norm Enrollment data. It is important to note, based on the past three years of Norm Enrollment data, Charter School's actual enrollment has averaged 156 students. As such, the enrollment projections in the Renewal Petition may be ambitious, as some students who might have attended the school at the new site have instead enrolled elsewhere, which could impact the assumptions underlying the budget for the renewal term.

- o Charter School's 2025-2026 cash flow projections submitted with the Renewal Petition reflect a negative cash balance of approximately \$60K as of June 30, 2026. The projections do **not** account for facilities-related amounts owed to the District in connection with the \$500/day fee that ranges from at least \$172,000 (if Charter School vacates on November 30, 2025) to \$278,000 (if Charter School vacates on June 30, 2026), as discussed above. Including these obligations would result in a projected net loss and a larger negative cash balance for Fiscal Year 2025-2026. Additionally, the budget narrative submitted with the renewal petition stated that NHCA has taken out a construction loan to provide improvements to the property at the new facility. Charter School provided a copy of a \$4.8M Business Loan Agreement with a financial institution, executed on April 28, 2025, carrying an interest rate of 8.5% and maturing on April 28, 2032, with a balloon payment of \$4.3M upon maturity. The budget narrative's loan drawdown and repayment schedule (consisting of the monthly principal repayments and interest) projected an outstanding principal balance of \$4.4M as of June 30, 2031, the end of the renewal charter term if Charter School's renewal petition is approved. Based on the budget submitted with the renewal petition, Charter School projected a net ending fund balance of \$3.6M as of June 30, 2031, which would be insufficient to fully cover the outstanding \$4.4M loan balance as of June 30, 2031, or the \$4.3M balloon payment as of April 28, 2032. As such, Charter School's current fiscal position may place it at risk of fiscal insolvency, particularly if it is unable to reach its enrollment targets, general additional revenues, and/or secure additional funds in the renewal charter term.

NEW HORIZONS CHARTER ACADEMY'S BUDGET (submitted with the Renewal Petition)						
	Current Year 2025-2026	Year 1 2026-2027	Year 2 2027-2028	Year 3 2028-2029	Year 4 2029-2030	Year 5 2030-2031
Net Assets	\$1,931,460	\$2,186,059	\$2,451,205	\$2,836,950	\$3,203,715	\$3,645,248
Net Income / (Loss)	\$238,266	\$254,599	\$265,146	\$385,745	\$366,765	\$441,533
Cash and Cash Equivalents	(\$59,725)	\$351,682	\$755,997	\$1,213,757	\$1,585,745	\$2,244,786
Cash Reserve Level	0%	8.6%	15.7%	23.1%	26.2%	36.6%
Norm Enrollment	165	210	244	267	300	300

- o Additionally, the District's review of the budget and cash flow projections submitted with the renewal petition identified inconsistencies, making them inaccurate and fiscally unreliable. These inconsistencies raise concerns about the overall reliability of the budget and cash flow projections. Examples of the inconsistencies are summarized below:
- The number of students in the first year of the General Information table lists 300 students. However, the enrollment for Fiscal Year 2026-2027 (Year 1) of the budget submitted with Charter School's renewal petition projects 210 students.
 - An Operations Coordinator was referenced in the budget submitted with Charter School's Renewal Petition. However, this position is not referenced in the school's organizational chart within the petition.
 - The following positions are referenced in Charter School's organizational chart within the petition: 1) English Language Learner/Intervention Specialists and 2) Director of Operations. However, these positions are not included in the budget submitted with the petition.
 - The payroll details for Fiscal Year 2025-2026 did not match the amounts in the multi-year budget.
 - The information provided in Petitioners' Narrative & Budget (in PDF form) does not match the information in the budget (in Excel form) submitted with the renewal petition. The following are some of the variances:

#	Description	Narrative & Budget (PDF)		Budget (Excel)	
1	4302 School Supplies	2025-2026	\$18,616	2025-2026	\$11,018
2	5811 Management Fee	2025-2026	\$67,840	2025-2026	\$49,520
		2026-2027	\$88,673	2026-2027	\$67,727
		2027-2028	\$105,873	2027-2028	\$77,282
		2028-2029	\$119,212	2028-2029	\$87,020
		2029-2030	\$137,965	2029-2030	\$100,708
		2030-2031	\$142,104	2030-2031	\$103,730
3	ASC 842 Non- Cash Lease Adjustment	2025-2026	\$276,117	2025-2026	\$0

- o The cash flow projections submitted with the renewal petition do not reflect the loan drawdowns as described in Petitioners' budget narrative. According to the loan drawdowns and repayments schedule provided in Petitioners' budget narrative, NHCA had drawn \$339,336 in June 2025, \$632,842 in July 2025, \$760,893 in August 2025, and \$786,627 in September 2025 and projected drawing down the remaining balance of \$2,281,271 in October 2025. The timing of loan proceeds is critical for managing operating and capital expenses. Missing or incorrect drawdown data in the financial reports or budgets can misrepresent expected cash availability, affecting the scheduling of major payments or projects.

d. Lack of Fiscal Management Capacity and Governing Board Oversight

Charter School has demonstrated both a lack of fiscal management capacity and inadequate financial oversight by its governing board. Charter School's Board is ultimately responsible to ensure that Charter School operates in a fiscally sound manner and maintains an appropriate fiscal management system. To date, the Charter School Board has failed to implement effective financial oversight and/or take appropriate corrective actions in response to Charter School's ongoing fiscal operations and management issues. This combination of weak fiscal management and insufficient governance oversight has significantly contributed to Charter School's financial decline, as evidenced by deteriorating net assets, declining student enrollment, unreliable and unrealistic financial projections, and the absence of an effective plan to ensure full payment of all amounts owed to the District, as described above. These ongoing deficiencies provide supporting evidence that Charter School lacks the capacity to address its financial issues and is demonstrably unlikely to successfully implement the educational program described in its Renewal Petition.

The findings outlined above (subsections a, b, c, and d) present a serious financial risk. Besides a high risk of fiscal mismanagement as described under section **III.A** above, these factors suggest that Charter School faces a high risk of insolvency

and may struggle to cover its day-to-day operational expenses due to declining student enrollment and ineffective financial practices.

Therefore, as established above, the Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition. (Ed. Code, § 47605(c)(2).)

IV. RECOMMENDATION

Based on the foregoing, District staff recommends that the LAUSD Board deny Charter School's Renewal Petition. The recommendation for denial is based on findings that Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition due to substantial fiscal and governance factors; and the Petitioners are demonstrably unlikely to successfully implement the educational program set forth in the Renewal Petition.

In order to deny the Renewal Petition on the grounds set forth above, the LAUSD Board must make written findings setting forth specific facts to support the denial of the Renewal Petition. (Ed. Code, § 47605(c); Ed. Code, § 47607(e).) Should the LAUSD Board decide to deny renewal of the Charter School's charter, District staff recommends that the Board adopt these *Findings of Fact in Support of Denial of the Renewal Charter Petition for New Horizons Charter Academy* as the Board's written findings of fact in support of the denial.

Exhibits available for perusal at the following link:

https://drive.google.com/drive/folders/1bWx0a-JvM_1tysGNeTjph1F5BnAMaV3O?usp=drive_link